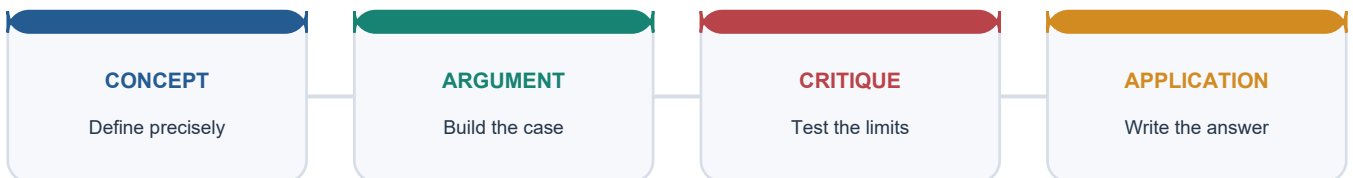


COMPLETE LEARNING SESSION

Polity Topic 37 - Central Vigilance Commission and Central Bureau of Investigation

COMPLETE LEARNING SESSION

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity Topic 37 - Central Vigilance Commission and Central Bureau of Investigation

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Source control: canonical Basic/Core and optional Advanced owners; official UPSC 2021 GS-II and controlled 2026 Prelims routing; the CVC Act, 2003; DSPE Act, 1946 as amended; Lokpal and Lokayuktas Act, 2013; Prevention of Corruption Act, 1988 as amended; official institutional histories; and proposition-controlled Supreme Court authorities. Volatile officeholders, live consent-state counts, vacancies, caseload and conviction statistics are omitted.

Core thesis: CVC supervises vigilance, CBI is the executive-created organisation, DSPE supplies police power, State consent governs the ordinary State-area route, constitutional courts retain an exceptional route, prosecution is separate and courts alone determine guilt.

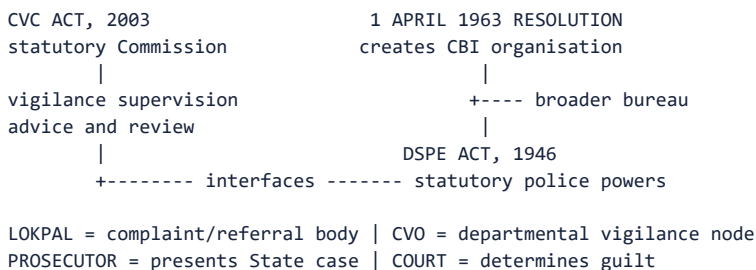
BASIC LEARNING SESSION

Learning roadmap

Foundation	CVC	CBI/DSPE	Federalism and safeguards	Application
identity, chronology, role firewall	composition, tenure, section 8, CVO, PIDPI	organisation, sections 2-4, Director, prosecution	sections 5-6, withdrawal, courts, Vineet Narain, 6A, 17A/19	Lokpal interface, lifecycle, problems, reforms

SESSION 1 - LEGAL IDENTITY: CVC, CBI AND DSPE ARE NOT THE SAME THING

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

The Central Vigilance Commission (CVC) is a statutory vigilance, supervisory and advisory commission. The Central Bureau of Investigation (CBI) is an executive-resolution organisation; its core police powers are exercised through the Delhi Special Police Establishment (DSPE) constituted by the DSPE Act, 1946.

Answer-grabbing line

In anti-corruption answers, institutional accuracy begins by separating the CVC's vigilance oversight from the CBI/DSPE's police investigation.

Must-write keywords

statutory CVC; executive-resolution CBI; statutory DSPE; vigilance; police investigation; prosecution; adjudication

Claim -> named evidence -> analysis -> qualification

- **Claim:** Legal source determines institutional power.
- **Named evidence:** CVC Act, 2003; Government of India Resolution dated 1 April 1963; DSPE Act, 1946.

- **Analysis:** The resolution explains the CBI's organisational form, but arrest, search, investigation and territorial authority require statutory and procedural authority. The CVC's statutory status does not give it police or judicial power.
- **Qualification:** Calling CBI 'non-statutory' must not be turned into the false claim that DSPE officers exercise no statutory police power.

Evidence and explanation

- [FACT] Neither CVC nor CBI is a constitutional body.
- [FACT] CBI is not created by the DSPE Act; DSPE is the statutory police establishment whose officers supply CBI's principal investigative powers.
- [FACT] CVC may supervise and advise within its statutory field, but it does not convict, sentence or impose criminal guilt.
- [FACT] A final police report or charge sheet is an investigative output; prosecution and adjudication remain separate stages.

Evidence checkpoint

Prove **Legal source determines institutional power.** with **CVC Act, 2003; Government of India Resolution dated 1 April 1963; DSPE Act, 1946.**; explain that **The resolution explains the CBI's organisational form, but arrest, search, investigation and territorial authority require statutory and procedural authority. The CVC's statutory status does not give it police or judicial power.**; then close with this limit: **Calling CBI 'non-statutory' must not be turned into the false claim that DSPE officers exercise no statutory police power.**

Prelims trap

Do not write 'CBI is a statutory body under the DSPE Act' or 'CVC is the anti-corruption court.'

Mains use

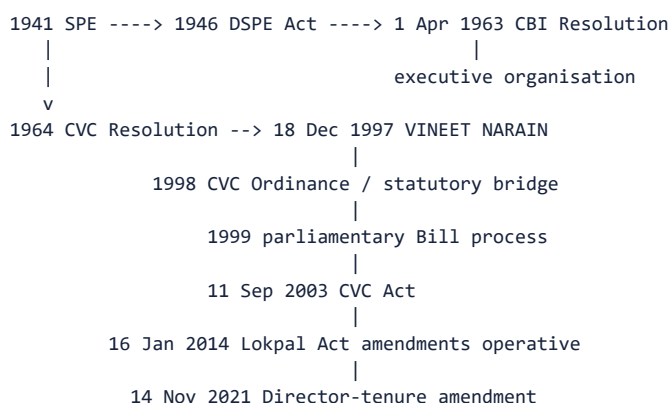
Use the organisation-versus-power distinction as the introduction to autonomy, federalism or reform questions.

Recap

CVC supervises vigilance; CBI organises investigation; DSPE supplies police power; prosecutors prosecute; courts decide guilt.

SESSION 2 - CHRONOLOGY: FROM THE 1941 SPE TO THE CURRENT LAYERED ARCHITECTURE

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

The present system is a historical composite: a wartime police unit became the statutory DSPE; CBI was organised by resolution; CVC moved from a 1964 resolution through the post-Vineet Narain ordinance and legislative process to the CVC Act, 2003; the Lokpal Act later recast referral and appointment interfaces.

Answer-grabbing line

India's anti-corruption architecture evolved by layering executive organisation, statutory police authority, vigilance oversight and constitutional judicial control.

Must-write keywords

SPE 1941; DSPE Act 1946; CBI Resolution 1963; CVC Resolution 1964; Vineet Narain 1997; Ordinance 1998; CVC Act 2003; Lokpal Act 2013

Claim -> named evidence -> analysis -> qualification

- **Claim:** Chronology explains why no single legal instrument contains the whole CVC-CBI design.
- **Named evidence:** Official CBI institutional history; Vineet Narain v Union of India (18 December 1997); Central Vigilance Commission Act 45 of 2003.
- **Analysis:** Each reform answered a different weakness: continuity after wartime, organisational expansion, vigilance coordination, insulation from executive interference, statutory status and later ombudsman-linked accountability.
- **Qualification:** The 1998 Ordinance was an interim statutory bridge; the durable current source is the CVC Act, 2003 as amended.

Evidence and explanation

- [FACT] The Special Police Establishment began in 1941 in the wartime supply-corruption setting.
- [FACT] The DSPE Act, 1946 provided a continuing statutory police establishment.
- [FACT] The Government of India established CBI by executive resolution dated 1 April 1963.
- [FACT] CVC began under a Government resolution in 1964 after the Santhanam Committee's anti-corruption recommendations.
- [FACT] Vineet Narain triggered the statutory-status and investigative-insulation trajectory; the CVC Ordinance, 1998 preceded the final 2003 Act.

Evidence checkpoint

Prove **Chronology explains why no single legal instrument contains the whole CVC-CBI design.** with **Official CBI institutional history; Vineet Narain v Union of India (18 December 1997); Central Vigilance Commission Act 45 of 2003.**; explain that **Each reform answered a different weakness: continuity after wartime, organisational expansion, vigilance coordination, insulation from executive interference, statutory status and later ombudsman-linked accountability.**; then close with this limit: **The 1998 Ordinance was an interim statutory bridge; the durable current source is the CVC Act, 2003 as amended.**

Prelims trap

Do not move the CBI's birth to 1946 or the CVC's statutory birth to 1964.

Mains use

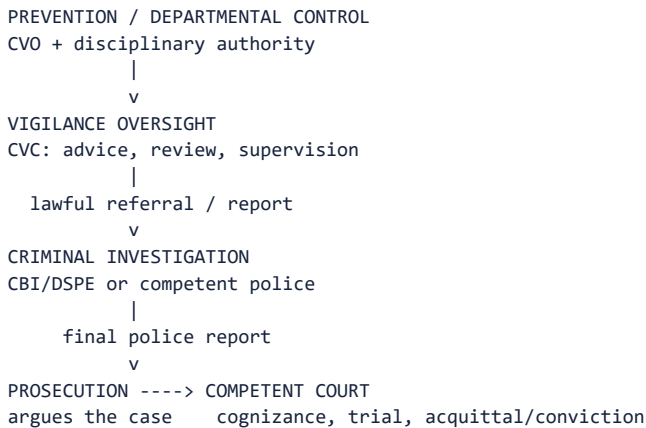
Use the timeline to show that reform has been incremental rather than the product of one comprehensive anti-corruption code.

Recap

1941 police unit -> 1946 statute -> 1963 bureau -> 1964 vigilance body -> 1997 safeguards -> 1998 ordinance -> 2003 Act -> 2013/14 Lokpal interfaces.

SESSION 3 - ROLE FIREWALL: VIGILANCE, INVESTIGATION, PROSECUTION AND TRIAL

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Vigilance administration prevents and processes misconduct inside government; criminal investigation gathers evidence under police law; prosecution presents the State's criminal case; and the court adjudicates guilt.

Answer-grabbing line

Anti-corruption legitimacy depends on a sequence of specialised institutions, not on one agency combining complaint, investigation, punishment and judgment.

Must-write keywords

preventive vigilance; disciplinary authority; FIR; investigation; prosecution sanction; cognizance; trial; presumption of innocence

Claim -> named evidence -> analysis -> qualification

- **Claim:** Institutional separation protects both effectiveness and due process.
- **Named evidence:** CVC Act section 8; DSPE Act; Prevention of Corruption Act sections 17A and 19; criminal procedure.
- **Analysis:** A CVO can detect a procurement risk before crime occurs; CVC can review vigilance handling; police can investigate a cognizable offence; the sanctioning authority and prosecutor address prosecution; only a court may convict.
- **Qualification:** The same facts may support departmental and criminal tracks, but one track does not automatically prove the other.

Evidence and explanation

- [FACT] Departmental proceedings use service-law standards and penalties; criminal trials require proof according to criminal law.
- [FACT] CVC advice is not a criminal verdict and CBI registration is not proof of guilt.
- [FACT] CBI does not award punishment; it may submit a charge sheet or closure report to the competent court.
- [FACT] Courts can review legality and evidence without becoming the day-to-day investigating agency.

Evidence checkpoint

Prove **Institutional separation protects both effectiveness and due process**. with **CVC Act section 8; DSPE Act; Prevention of Corruption Act sections 17A and 19; criminal procedure.**; explain that **A CVO can detect a procurement risk before crime occurs; CVC can review vigilance handling; police can investigate a cognizable offence; the sanctioning authority and prosecutor address prosecution; only a court may convict.**; then close with this limit: **The same facts may support departmental and criminal tracks, but one track does not automatically prove the other.**

Prelims trap

Do not equate vigilance advice with FIR, charge sheet with conviction, or departmental penalty with criminal sentence.

Mains use

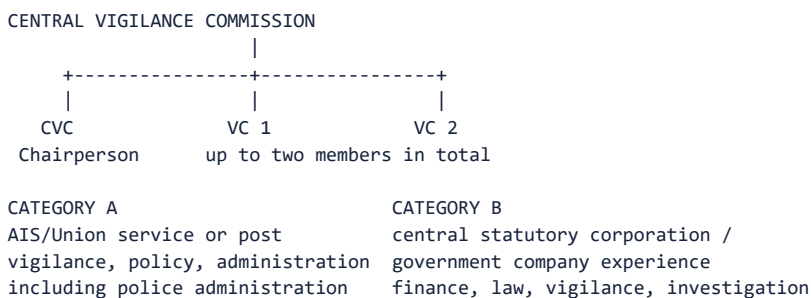
Use this firewall to organise any answer comparing CVC, CBI, Lokpal, departmental vigilance and courts.

Recap

prevent -> supervise -> investigate -> prosecute -> adjudicate; every verb belongs to a different legal actor.

SESSION 4 - CVC SECTION 3: COMPOSITION AND QUALIFICATION BALANCE

VISUAL FIRST



If all 3 offices are filled: not more than 2 from either category.

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Section 3 constitutes a multi-member Commission consisting of one Central Vigilance Commissioner as Chairperson and not more than two Vigilance Commissioners, selected from two statutory experience categories.

Answer-grabbing line

Section 3 combines administrative-vigilance experience with public-sector specialist expertise and prevents a fully staffed Commission from being monopolised by one category.

Must-write keywords

section 3; one CVC; not more than two VCs; multi-member; police administration; finance; law; vigilance; investigations; category cap

Claim -> named evidence -> analysis -> qualification

- **Claim:** Composition is designed for institutional breadth rather than judicial membership.
- **Named evidence:** Central Vigilance Commission Act, 2003, section 3(2)-(3).
- **Analysis:** The public-service category brings knowledge of administration and police systems; the corporation/government-company category brings finance, banking, insurance, law and investigative experience. The category cap encourages a mixed Commission when three posts are occupied.
- **Qualification:** The Act allows up to two VCs; it does not require both posts to be continuously filled and it does not prescribe a judicial member.

Evidence and explanation

- [FACT] The Central Vigilance Commissioner is the Chairperson.
- [FACT] The Commission's maximum statutory size is three.
- [FACT] Category A includes All-India/Union service or Union civil-post experience in vigilance, policy and administration, including police administration.
- [FACT] Category B concerns specified central public-sector office and expertise in finance, including insurance and banking, law, vigilance and investigations.

Evidence checkpoint

Prove **Composition is designed for institutional breadth rather than judicial membership.** with **Central Vigilance Commission Act, 2003, section 3(2)-(3).**; explain that **The public-service category brings knowledge of administration and police systems; the corporation/government-company category brings finance, banking, insurance, law and investigative experience. The category cap encourages a mixed Commission when three posts are occupied.**; then close with this limit: **The Act allows up to two VCs; it does not require both posts to be continuously filled and it does not prescribe a judicial member.**

Prelims trap

Do not say 'CVC is a single-member body', 'exactly two VCs must exist', or 'a Supreme Court judge is compulsory.'

Mains use

Use the category design to evaluate expertise, diversity and the absence of a wholly independent professional cadre.

Recap

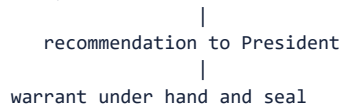
1 Chairperson + up to 2 members; two experience pools; maximum two appointees from either pool.

SESSION 5 - CVC APPOINTMENT, TENURE, SERVICE LIMITS AND REMOVAL

VISUAL FIRST

APPOINTMENT

PM (Chair) + Home Minister + Lok Sabha LoP/statutory substitute



TENURE: 4 years OR age 65, whichever earlier

VC -> CVC possible, but aggregate Commission service <= 4 years

REMOVAL A: President -> Supreme Court inquiry -> proved misconduct/incapacity

REMOVAL B: listed direct grounds such as insolvency or disqualifying interest

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

CVC and VCs are appointed by the President on a three-member committee's recommendation, hold office for four years or until age sixty-five, and enjoy a protected removal process with separate direct statutory grounds.

Answer-grabbing line

The CVC Act protects tenure without creating personal entitlement: appointment is committee-based, service is capped, and integrity failures remain removable under defined procedures.

Must-write keywords

President; Prime Minister; Home Minister; Leader of Opposition; four years; age 65; aggregate cap; Supreme Court inquiry; post-tenure bar

Claim -> named evidence -> analysis -> qualification

- **Claim:** Appointment dispersion and removal protection are complementary independence safeguards.

- **Named evidence:** CVC Act sections 4, 5 and 6; Centre for Public Interest Litigation v Union of India (2011).
- **Analysis:** A plural recommending committee reduces unilateral choice; a fixed term limits ordinary pleasure removal; Supreme Court inquiry protects against retaliatory removal; and post-tenure government-employment bars reduce inducement risk.
- **Qualification:** Centre for PIL requires the committee to protect institutional integrity, but judicial review does not convert the Court into the selection authority.

Evidence and explanation

- [FACT] The appointment committee is PM, Union Home Minister and Lok Sabha Leader of Opposition; the Act supplies a substitute where no LoP is recognised.
- [FACT] Term is four years or age sixty-five, whichever is earlier.
- [FACT] A VC may become CVC, but total service as VC plus CVC cannot exceed four years.
- [FACT] The CVC may resign by writing to the President; statutory pay/service treatment and the bar on disadvantageous variation protect office conditions.
- [FACT] After office, specified diplomatic/presidential assignments and further government office-of-profit employment are barred.
- [FACT] Proved misbehaviour or incapacity ordinarily requires a Presidential reference and Supreme Court inquiry; listed objective grounds form a separate route.

Evidence checkpoint

Prove **Appointment dispersion and removal protection are complementary independence safeguards.** with **CVC Act sections 4, 5 and 6; Centre for Public Interest Litigation v Union of India (2011).**; explain that **A plural recommending committee reduces unilateral choice; a fixed term limits ordinary pleasure removal; Supreme Court inquiry protects against retaliatory removal; and post-tenure government-employment bars reduce inducement risk.**; then close with this limit: **Centre for PIL requires the committee to protect institutional integrity, but judicial review does not convert the Court into the selection authority.**

Prelims trap

Do not import the CJI into the CVC appointment committee or state a five-year term.

Mains use

Use Centre for PIL to add the institutional-integrity test to a statutory appointment answer.

Recap

PM-HM-LoP recommend; President appoints; 4 years/65; aggregate cap; protected removal plus direct listed grounds.

SESSION 6 - CVC SECTION 8: THE COMPLETE FUNCTION MAP

VISUAL FIRST

S Superintend DSPE PC Act investigations
D Direct DSPE generally, but never dictate a particular case's manner/result
I Inquire or cause inquiry/investigation on reference or covered complaint
R Review investigation progress
S Review prosecution-sanction applications
A Advise Union and covered central bodies
V Supervise vigilance administration

MEMORY LINE: S-D-I-R-S-A-V

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Section 8 gives CVC a combined supervisory, inquiry-routing, progress-review, advisory and vigilance-administration mandate within specified central anti-corruption fields.

Answer-grabbing line

Section 8 makes CVC an oversight hub, not a universal investigator: its strength lies in supervision, review and reasoned advice across the vigilance chain.

Must-write keywords

section 8; superintendence; directions; inquiry; investigation review; sanction review; advice; vigilance administration

Claim -> named evidence -> analysis -> qualification

- **Claim:** CVC's operational importance comes from connecting system supervision with case-progress review.
- **Named evidence:** CVC Act section 8(1)(a)-(h) and section 8(2).
- **Analysis:** The Commission can see recurring risks across departments, monitor DSPE corruption investigations, examine delayed sanction requests and advise competent authorities, thereby linking preventive and punitive vigilance without replacing police or disciplinary decision-makers.
- **Qualification:** Every clause has a person, offence, organisation or direction boundary; seriousness alone does not create jurisdiction.

Evidence and explanation

- [FACT] CVC superintendence concerns DSPE investigation of Prevention of Corruption Act offences and connected same-trial offences within the statutory formulation.
- [FACT] CVC may inquire or cause inquiry/investigation on Central Government reference and on covered complaints.
- [FACT] The ordinary complaint category includes members of All-India Services serving in connection with Union affairs, Group A Central officers and notified levels in covered central entities; Lokpal references add the amended Group-wise route.
- [FACT] It reviews progress of relevant DSPE investigations and pending prosecution-sanction applications.
- [FACT] It advises the Union and covered central entities and supervises vigilance administration within the Act.

Evidence checkpoint

Prove **CVC's operational importance comes from connecting system supervision with case-progress review.** with **CVC Act section 8(1)(a)-(h) and section 8(2).**; explain that **The Commission can see recurring risks across departments, monitor DSPE corruption investigations, examine delayed sanction requests and advise competent authorities, thereby linking preventive and punitive vigilance without replacing police or disciplinary decision-makers.**; then close with this limit: **Every clause has a person, offence, organisation or direction boundary; seriousness alone does not create jurisdiction.**

Prelims trap

Do not reduce section 8 to 'CVC controls CBI' or enlarge complaint coverage to every person and every government.

Mains use

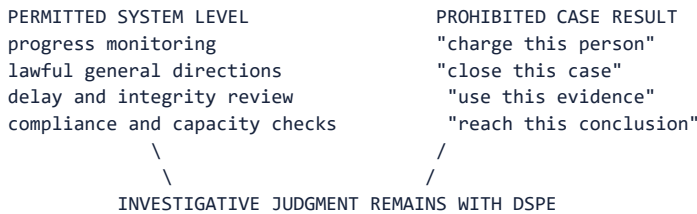
Use the S-D-I-R-S-A-V chain to explain both functional reach and the advisory ceiling.

Recap

supervise, direct within limits, inquire, review investigation, review sanction, advise, supervise vigilance.

SESSION 7 - SUPERINTENDENCE WITHOUT CASE DICTATION

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Superintendence is lawful institutional oversight over functioning and responsibility; it is not authority to require investigation or disposal of a particular case in a particular manner.

Answer-grabbing line

The non-dictation proviso is the hinge between accountable investigation and politically managed investigation.

Must-write keywords

superintendence; general direction; particular manner; investigative judgment; evidence; final report; non-dictation proviso

Claim -> named evidence -> analysis -> qualification

- **Claim:** Oversight and operational independence are not opposites.
- **Named evidence:** CVC Act section 8(1)(b) proviso; DSPE Act section 4; Lokpal Act section 25 proviso.
- **Analysis:** System-level supervision can correct delay, poor procedures or capacity failure while investigators retain responsibility for witnesses, evidence and the legally appropriate final report. The same principle constrains Lokpal supervision over referred DSPE matters.
- **Qualification:** The proviso protects professional judgment; it does not immunise unlawful investigation from courts, statutory review or disciplinary control.

Evidence and explanation

- [FACT] CVC may give directions to DSPE for discharge of its statutory responsibility.
- [FACT] CVC cannot require a particular case to be investigated or disposed of in a particular manner.
- [FACT] Lokpal's special superintendence over referred cases carries a parallel non-dictation limit.
- [FACT] Courts retain review over jurisdiction, legality, fairness and the final criminal process.

Evidence checkpoint

Prove **Oversight and operational independence are not opposites**. with **CVC Act section 8(1)(b) proviso; DSPE Act section 4; Lokpal Act section 25 proviso.**; explain that **System-level supervision can correct delay, poor procedures or capacity failure while investigators retain responsibility for witnesses, evidence and the legally appropriate final report. The same principle constrains Lokpal supervision over referred DSPE matters.**; then close with this limit: **The proviso protects professional judgment; it does not immunise unlawful investigation from courts, statutory review or disciplinary control.**

Prelims trap

Do not describe superintendence as power to write the charge sheet, choose guilt or compel closure.

Mains use

Use this distinction to answer the 'independence versus accountability' tension without demanding an unanswerable police agency.

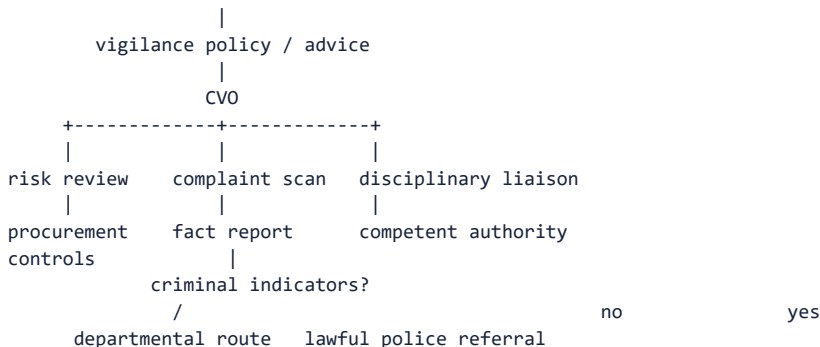
Recap

supervise systems and progress; do not script evidence, charges or result.

SESSION 8 - CVOs AND DEPARTMENTAL VIGILANCE: PREVENTION BEFORE POLICE POWER

VISUAL FIRST

CVC



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

A Chief Vigilance Officer (CVO) is the internal vigilance link in a Ministry, department or covered public organisation, coordinating preventive vigilance, complaint examination and departmental follow-up.

Answer-grabbing line

The CVO system treats corruption risk as an administrative-design problem before it becomes only a criminal-case problem.

Must-write keywords

CVO; preventive vigilance; punitive vigilance; sensitive posts; procurement; complaint scrutiny; disciplinary authority; referral

Claim -> named evidence -> analysis -> qualification

- **Claim:** Departmental vigilance and criminal investigation solve different problems.
- **Named evidence:** CVC's section 8 vigilance-administration mandate and the Union CVO framework.
- **Analysis:** CVO access to files, workflows and procurement systems enables early risk correction, while police powers are reserved for a competent investigating agency when facts disclose criminality. This division avoids turning every administrative lapse into an FIR.
- **Qualification:** A CVO is ordinarily embedded in the organisation; functional access and independence therefore require safeguards against local pressure.

Evidence and explanation

- [FACT] Preventive vigilance includes risk mapping, rotation in sensitive posts, procurement controls, conflict management and audit trails.
- [FACT] Punitive vigilance includes complaint examination, fact collection and coordination of departmental proceedings.
- [FACT] The competent disciplinary authority, not the CVO or CVC alone, imposes service penalties.
- [FACT] Criminal referral does not erase the need for territorial jurisdiction, offence notification and procedural safeguards.

Evidence checkpoint

Prove **Departmental vigilance and criminal investigation solve different problems.** with CVC's section 8 vigilance-administration mandate and the Union CVO framework.; explain that **CVO access to files, workflows and procurement systems enables early risk correction, while police powers are reserved for a competent investigating agency when facts disclose criminality.** This division avoids turning every administrative lapse into an FIR.; then close with this limit: **A CVO is ordinarily embedded in the organisation; functional access and independence therefore require safeguards against local pressure.**

Prelims trap

Do not call a CVO a CBI branch, police station, prosecutor or final disciplinary authority.

Mains use

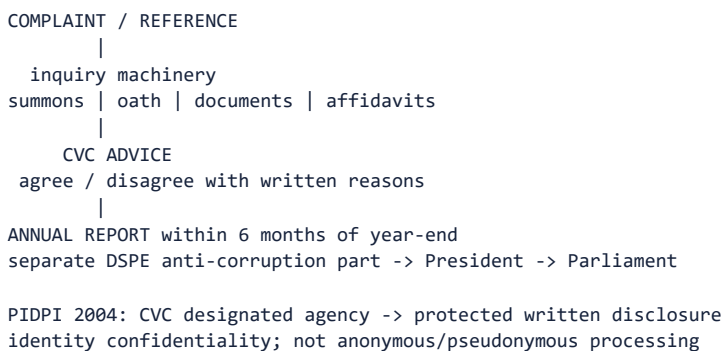
Use CVO reform - stable tenure, expertise, direct access and auditable follow-up - as the preventive half of anti-corruption reform.

Recap

CVO prevents and coordinates; disciplinary authority penalises service misconduct; police investigate crime.

SESSION 9 - CVC ADVICE, CIVIL-COURT POWERS, REPORTING AND PIDPI

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

CVC combines inquiry-related civil-court powers, advisory outputs, parliamentary reporting and a designated-agency role under the 2004 Public Interest Disclosure and Protection of Informers (PIDPI) Resolution.

Answer-grabbing line

CVC accountability relies less on direct punishment than on evidence-gathering, recorded disagreement, protected disclosure and public-institutional reporting.

Must-write keywords

civil-court powers; section 17; written reasons; section 14; annual report; PIDPI Resolution 2004; confidentiality; whistle-blower

Claim -> named evidence -> analysis -> qualification

- **Claim:** Reason-giving and reporting give an advisory institution institutional force.
- **Named evidence:** CVC Act sections 11, 14 and 17; Government of India PIDPI Resolution dated 21 April 2004.
- **Analysis:** Civil-court powers make inquiry credible; written disagreement prevents silent disregard of advice; Parliament receives system-level visibility; PIDPI gives a protected disclosure channel for corruption or misuse-of-office complaints within its applicable central field.
- **Qualification:** The Whistle Blowers Protection Act, 2014 should not be cited as the operative source of CVC's PIDPI role without verified commencement; PIDPI is the controlled authority used here.

Evidence and explanation

- [FACT] For specified inquiries CVC may summon, examine on oath, require documents, receive affidavits, requisition public records and issue commissions.
- [FACT] A covered organisation may disagree with CVC advice but must record reasons in writing and communicate them.
- [FACT] The annual report is presented to the President within six months of year-end and laid before both Houses; it contains a separate relevant DSPE part.
- [FACT] Under PIDPI, CVC receives protected written disclosures and safeguards the complainant's identity under the Resolution's procedure.

Evidence checkpoint

Prove **Reason-giving and reporting give an advisory institution institutional force.** with **CVC Act sections 11, 14 and 17; Government of India PIDPI Resolution dated 21 April 2004.**; explain that **Civil-court powers make inquiry credible; written disagreement prevents silent disregard of advice; Parliament receives system-level visibility; PIDPI gives a protected disclosure channel for corruption or misuse-of-office complaints within its applicable central field.**; then close with this limit: **The Whistle Blowers Protection Act, 2014 should not be cited as the operative source of CVC's PIDPI role without verified commencement; PIDPI is the controlled authority used here.**

Prelims trap

Do not call CVC advice binding, civil-court powers criminal-trial power, or PIDPI an anonymous complaint route.

Mains use

Use reason-giving and annual reporting as accountability mechanisms, then evaluate whether follow-up is sufficiently transparent.

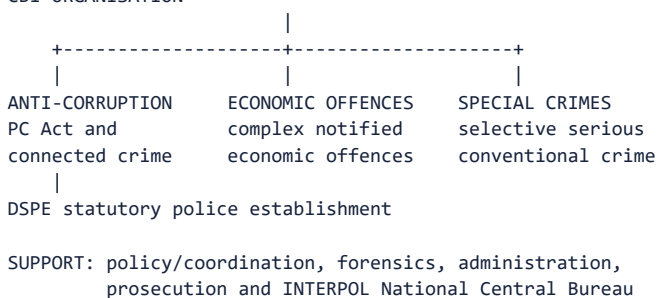
Recap

inquire with procedural powers -> advise -> require reasons for disagreement -> report -> protect eligible disclosure.

SESSION 10 - CBI ORGANISATION AND STABLE FUNCTIONAL CATEGORIES

VISUAL FIRST

CBI ORGANISATION



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

CBI is a Union investigative organisation created in 1963, operating through stable functional categories such as anti-corruption, economic offences and special crimes, with support and international-police coordination functions.

Answer-grabbing line

CBI's organisational breadth does not create inherent all-India police power; each investigation still needs offence, territory and entry-route authority.

Must-write keywords

CBI Resolution 1963; anti-corruption; economic offences; special crimes; INTERPOL NCB; notified offence; territorial authority

Claim -> named evidence -> analysis -> qualification

- **Claim:** Organisational division improves specialisation but cannot enlarge jurisdiction.
- **Named evidence:** Government of India Resolution dated 1 April 1963; official CBI organisational descriptions; DSPE Act.
- **Analysis:** Specialisation supports forensic accounting, complex inter-State evidence and serious-crime investigation. Yet the legal authority for coercive steps remains tied to DSPE notification, territory, consent or court order and applicable criminal law.
- **Qualification:** Divisional names and internal structures can change; UPSC answers should use stable categories rather than volatile branch counts or officeholder lists.

Evidence and explanation

- [FACT] Anti-corruption work centres on Prevention of Corruption Act and connected offences.
- [FACT] Economic-offence work does not make CBI the Enforcement Directorate or confer PMLA powers.
- [FACT] Special-crime work is selective and depends on a lawful jurisdictional route.
- [FACT] INTERPOL NCB coordination facilitates international police cooperation but does not itself prove domestic jurisdiction or guilt.

Evidence checkpoint

Prove **Organisational division improves specialisation but cannot enlarge jurisdiction.** with **Government of India Resolution dated 1 April 1963; official CBI organisational descriptions; DSPE Act.**; explain that **Specialisation supports forensic accounting, complex inter-State evidence and serious-crime investigation. Yet the legal authority for coercive steps remains tied to DSPE notification, territory, consent or court order and applicable criminal law.**; then close with this limit: **Divisional names and internal structures can change; UPSC answers should use stable categories rather than volatile branch counts or officeholder lists.**

Prelims trap

Do not infer a power merely from the word 'central', 'economic' or 'international.'

Mains use

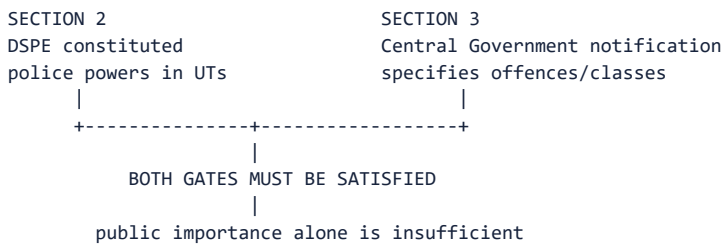
Use stable functional categories to discuss capacity while keeping the DSPE legal gate visible.

Recap

specialised bureau, bounded police power: category helps expertise; law supplies authority.

SESSION 11 - DSPE SECTIONS 2 AND 3: TERRITORY AND NOTIFIED OFFENCES

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Section 2 supplies the DSPE's baseline police establishment and powers in Union Territories; section 3 requires the Central Government to notify the offences or classes of offences that DSPE may investigate.

Answer-grabbing line

CBI jurisdiction begins with two questions: where may DSPE officers act, and is the alleged offence within a section 3 notification?

Must-write keywords

DSPE section 2; Union Territory; police powers; section 3; notification; offence class; cognizable offence

Claim -> named evidence -> analysis -> qualification

- **Claim:** Territory and subject-matter jurisdiction are independent legal gates.
- **Named evidence:** Delhi Special Police Establishment Act, 1946, sections 2 and 3.
- **Analysis:** A case can be nationally important yet fall outside a notified offence class; conversely, a notified offence does not itself authorise exercise of police power in every State. The two gates prevent prestige-based jurisdiction.
- **Qualification:** Union Territory baseline remains subject to the Act and applicable criminal procedure; it is not a licence for unlawful investigation.

Evidence and explanation

- [FACT] Section 2 is the statutory police-establishment base, not the provision that creates CBI as a bureau.
- [FACT] Section 3 uses Central Government notification to identify offence classes.
- [FACT] Connected offences may travel with a competent investigation as criminal law permits, but competence must first exist.
- [FACT] Public demand, political resolution or media attention cannot replace statutory notification.

Evidence checkpoint

Prove **Territory and subject-matter jurisdiction are independent legal gates.** with **Delhi Special Police Establishment Act, 1946, sections 2 and 3.**; explain that **A case can be nationally important yet fall outside a notified offence class; conversely, a notified offence does not itself authorise exercise of police power in every State. The two gates prevent prestige-based jurisdiction.**; then close with this limit: **Union Territory baseline remains subject to the Act and applicable criminal procedure; it is not a licence for unlawful investigation.**

Prelims trap

Do not jump directly from 'CBI case' to nationwide jurisdiction without checking section 2 territory and section 3 offences.

Mains use

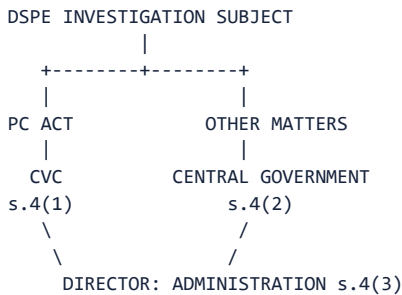
Start a jurisdiction answer with the section 2-section 3 dual gate before discussing State consent.

Recap

section 2 asks where; section 3 asks what; neither alone completes jurisdiction.

SESSION 12 - DSPE SECTION 4: SUPERINTENDENCE SPLIT AND DIRECTOR'S ADMINISTRATION

VISUAL FIRST



Special statute: Lokpal s.25 for Lokpal-referred matters

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

DSPE section 4 separates superintendence by subject: CVC for Prevention of Corruption Act investigations, Central Government for other matters, and administration of the police establishment in the Director.

Answer-grabbing line

CBI has no single universal controller: superintendence changes with the legal subject, while day-to-day administration is vested in the Director.

Must-write keywords

section 4(1); CVC; PC Act; section 4(2); Central Government; section 4(3); administration; Director; Lokpal section 25

Claim -> named evidence -> analysis -> qualification

- **Claim:** The statutory split distinguishes oversight policy from agency administration.
- **Named evidence:** DSPE Act section 4; Lokpal and Lokayuktas Act section 25.
- **Analysis:** The split addresses corruption-specific insulation through CVC while retaining executive superintendence for other DSPE work. Director administration supplies internal command; Lokpal creates a special override only for matters referred under its Act.
- **Qualification:** Administrative placement under DoPT does not prove lawful case-specific political direction, and statutory superintendence does not permit dictating a result.

Evidence and explanation

- [FACT] CVC superintendence is not over every CBI division or case.
- [FACT] Central Government superintendence remains for other DSPE matters, save a special statutory rule.
- [FACT] The Director exercises specified Inspector-General-like powers over administration.
- [FACT] Lokpal section 25 operates notwithstanding DSPE section 4 for Lokpal-referred preliminary inquiries/investigations.

Evidence checkpoint

Prove **The statutory split distinguishes oversight policy from agency administration.** with **DSPE Act section 4; Lokpal and Lokayuktas Act section 25.**; explain that **The split addresses corruption-specific insulation through CVC while retaining executive superintendence for other DSPE work. Director administration supplies internal command; Lokpal creates a special override only for matters referred under its Act.**; then close with this limit: **Administrative placement under DoPT does not prove lawful case-specific political direction, and statutory superintendence does not permit dictating a result.**

Prelims trap

Do not write 'CVC controls all CBI cases' or 'Central Government has no role in CBI.'

Mains use

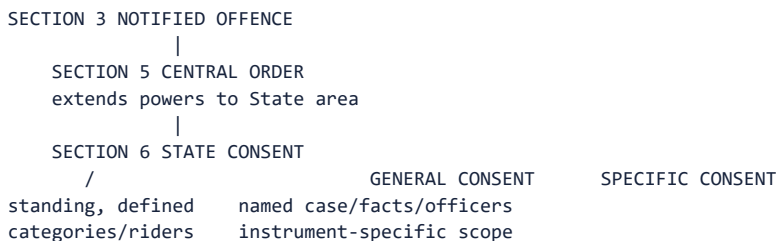
Use the three-part split to diagnose where executive influence may arise and where legal safeguards apply.

Recap

PC Act -> CVC; other DSPE -> Centre; administration -> Director; Lokpal referrals -> special section 25 route.

SESSION 13 - DSPE SECTIONS 5 AND 6: EXTENSION, GENERAL CONSENT AND SPECIFIC CONSENT

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Section 5 permits the Central Government to extend DSPE powers and jurisdiction to a State area for notified offences; section 6 requires the State Government's consent for their exercise there.

Answer-grabbing line

State consent is not administrative courtesy but the statutory expression of policing federalism in the ordinary DSPE State-area route.

Must-write keywords

section 5 extension; section 6 consent; State List; police; public order; general consent; specific consent; riders

Claim -> named evidence -> analysis -> qualification

- **Claim:** Consent translates the State's constitutional police domain into a statutory investigative gate.
- **Named evidence:** DSPE Act sections 5 and 6; Seventh Schedule, State List Entries 1 and 2.
- **Analysis:** General consent reduces repetitive permissions for defined cases; specific consent gives closer State control over a named investigation. Both can be conditioned by text, date, persons, offences and territory.
- **Qualification:** Consent is necessary in the ordinary executive route but does not bind constitutional courts exercising Articles 32 or 226.

Evidence and explanation

- [FACT] Section 5 extension and section 6 consent are distinct legal steps.
- [FACT] General consent is a standing permission whose exact scope depends on its instrument.
- [FACT] Specific consent is limited to the case, facts, persons or offences described.
- [FACT] The roster of States granting or withholding general consent is volatile and should not be memorised without a dated official source.

Evidence checkpoint

Prove **Consent translates the State's constitutional police domain into a statutory investigative gate.** with **DSPE Act sections 5 and 6; Seventh Schedule, State List Entries 1 and 2.**; explain that **General consent reduces repetitive permissions for defined cases; specific consent gives closer State control over a named investigation. Both can be conditioned by text, date, persons, offences and territory.**; then close with this limit: **Consent is necessary in the ordinary executive route but does not bind constitutional courts exercising Articles 32 or 226.**

Prelims trap

Do not treat a Central Government order under section 5 as a substitute for State consent under section 6.

Mains use

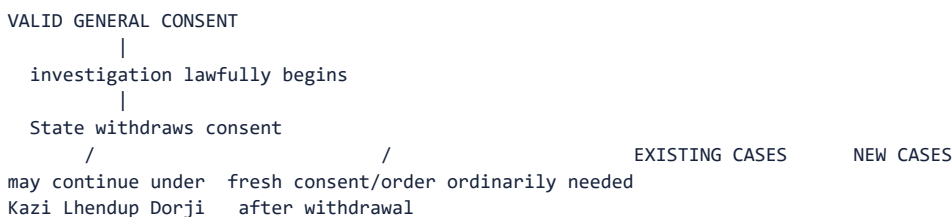
Link sections 5-6 to State List policing, then balance autonomy with inter-State accountability needs.

Recap

notification -> extension -> consent; general and specific consent are different instruments.

SESSION 14 - WITHDRAWAL OF CONSENT: PROSPECTIVE EFFECT AND FACT-SENSITIVE LIMITS

VISUAL FIRST



Fertico: consent disputes remain fact- and prejudice-sensitive.

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Withdrawal of general consent ordinarily changes authority for future investigations; it does not automatically erase investigations validly begun while consent operated.

Answer-grabbing line

The legally safe formula is prospective withdrawal, continuity of validly instituted cases and close attention to the text and timing of consent.

Must-write keywords

withdrawal; prospective operation; existing investigation; new case; Kazi Lhendup Dorji; Fertico; timing; prejudice

Claim -> named evidence -> analysis -> qualification

- **Claim:** Consent withdrawal is meaningful without being retrospectively destructive.
- **Named evidence:** Kazi Lhendup Dorji v CBI (1994); Fertico Marketing and Investment Pvt Ltd v CBI (2020).
- **Analysis:** Prospective operation preserves legal certainty and completed investigative steps, while requiring a new authority route for later cases. Fertico illustrates that riders, parties, subsequent consent and pleaded prejudice can matter.
- **Qualification:** Fertico must not be converted into a universal proposition that post-facto consent always cures an absent jurisdictional foundation.

Evidence and explanation

- [FACT] Kazi Lhendup Dorji allowed completion and statutory reporting of investigations validly initiated before withdrawal.
- [FACT] The case does not confer permanent jurisdiction for every future investigation.
- [FACT] Consent instruments may differ in offence, officer and territorial coverage.
- [FACT] A completed investigation is not retrospectively invalid merely because general consent was later withdrawn.

Evidence checkpoint

Prove **Consent withdrawal is meaningful without being retrospectively destructive**. with **Kazi Lhendup Dorji v CBI (1994)**; **Fertico Marketing and Investment Pvt Ltd v CBI (2020)**.; explain that **Prospective operation preserves legal certainty and completed investigative steps, while requiring a new authority route for later cases**. **Fertico illustrates that riders, parties, subsequent consent and pleaded prejudice can matter.**; then close with this limit: **Fertico must not be converted into a universal proposition that post-facto consent always cures an absent jurisdictional foundation.**

Prelims trap

Do not claim withdrawal automatically nullifies completed steps or, at the opposite extreme, has no legal effect.

Mains use

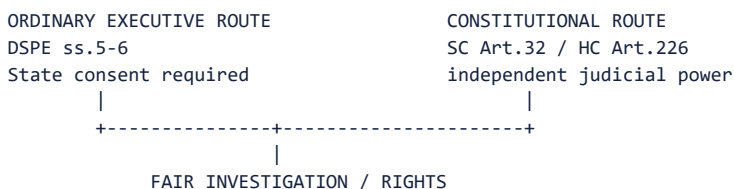
Use prospective operation to answer the official 2021 GS-II consent question precisely.

Recap

valid old case may continue; new case needs a fresh route; later consent questions are fact-specific.

SESSION 15 - ARTICLES 32 AND 226: CONSTITUTIONAL COURT DIRECTIONS WITHOUT STATE CONSENT

VISUAL FIRST



CPDR (2010): valid without State consent, but use sparingly, cautiously and in exceptional situations.

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

A High Court under Article 226 and the Supreme Court under Article 32 may direct a CBI investigation within a State without its consent because the authority flows from the Constitution, not from an executive bypass of section 6.

Answer-grabbing line

CPDR preserves federalism by keeping State consent ordinary and constitutional-court displacement exceptional.

Must-write keywords

Article 32; Article 226; judicial review; basic structure; fair investigation; CPDR 2010; exceptional; cautious

Claim -> named evidence -> analysis -> qualification

- **Claim:** Statutory consent cannot curtail constitutional judicial review.
- **Named evidence:** *State of West Bengal v Committee for Protection of Democratic Rights, West Bengal (2010)*, Constitution Bench.
- **Analysis:** The Court reconciled State police autonomy with its duty to enforce fundamental rights and legality. The order is not deemed consent; it is an independent constitutional command binding public authorities.
- **Qualification:** The power is not routine and cannot be claimed by the Union executive merely because it prefers CBI over State police.

Evidence and explanation

- [FACT] The Constitution Bench held that an Article 226 direction for CBI investigation without State consent is valid and does not violate federalism or separation of powers.
- [FACT] Article 32 supports the Supreme Court's corresponding constitutional power.

- [FACT] Judicial review is part of the Constitution's basic structure.
- [FACT] The Court cautioned that CBI transfer should be sparing, cautious and exceptional.

Evidence checkpoint

Prove **Statutory consent cannot curtail constitutional judicial review**. with **State of West Bengal v Committee for Protection of Democratic Rights, West Bengal (2010), Constitution Bench.**; explain that **The Court reconciled State police autonomy with its duty to enforce fundamental rights and legality. The order is not deemed consent; it is an independent constitutional command binding public authorities.**; then close with this limit: **The power is not routine and cannot be claimed by the Union executive merely because it prefers CBI over State police.**

Prelims trap

Do not write 'State consent is never required' or 'the Union Government may invoke CPDR to ignore section 6.'

Mains use

Use CPDR as the qualification after explaining sections 5-6, not as the opening rule.

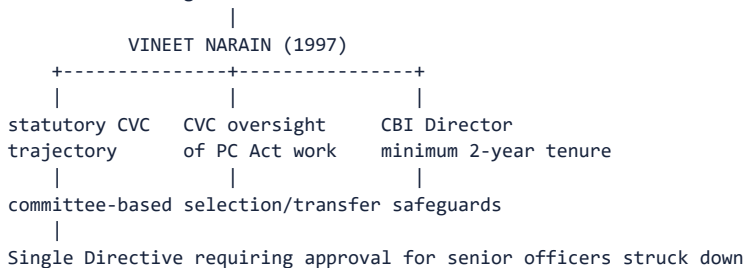
Recap

executive route needs consent; constitutional court route is independent, rights-based and exceptional.

SESSION 16 - VINEET NARAIN: INDEPENDENCE SAFEGUARDS AND THE SINGLE DIRECTIVE

VISUAL FIRST

PROBLEM: investigative inertia + executive interference



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Vineet Narain used continuing mandamus to prescribe institutional safeguards for CBI and Enforcement Directorate functioning pending legislation, including statutory CVC, corruption-investigation oversight, Director tenure and invalidation of the executive Single Directive.

Answer-grabbing line

Vineet Narain did not free CBI from law or government; it replaced opaque executive dependence with rule-bound supervision and tenure safeguards.

Must-write keywords

Vineet Narain; 18 December 1997; continuing mandamus; statutory CVC; two-year tenure; Single Directive; committee safeguard; CBI Manual

Claim -> named evidence -> analysis -> qualification

- **Claim:** Investigative independence requires institutional design, not merely honest individuals.
- **Named evidence:** Vineet Narain v Union of India, (1998) 1 SCC 226, judgment dated 18 December 1997.
- **Analysis:** Fixed tenure reduces transfer pressure; plural selection reduces unilateral appointment; CVC oversight creates corruption-specific accountability; invalidating the Single Directive removed rank-based executive permission before investigation.

- **Qualification:** Later statutes altered parts of the architecture; cite the judgment for its directions and trajectory, then state the current amended law.

Evidence and explanation

- [FACT] The Court required statutory status for CVC.
- [FACT] It made CVC responsible for CBI's efficient functioning in the anti-corruption oversight design and required structured reporting/review.
- [FACT] Its then Director-selection direction used a CVC-headed committee with the Home Secretary and Secretary (Personnel); current section 4A now uses the post-Lokpal PM-LoP-CJI committee.
- [FACT] It protected a minimum two-year tenure for the CBI Director, required committee control over premature transfer, and protected the Director's internal work-allocation freedom.
- [FACT] It required adherence to the CBI Manual as an essential professional safeguard.
- [FACT] It invalidated the Single Directive that protected senior officers through prior executive permission.

Evidence checkpoint

Prove **Investigative independence requires institutional design, not merely honest individuals.** with **Vineet Narain v Union of India, (1998) 1 SCC 226, judgment dated 18 December 1997.**; explain that **Fixed tenure reduces transfer pressure; plural selection reduces unilateral appointment; CVC oversight creates corruption-specific accountability; invalidating the Single Directive removed rank-based executive permission before investigation.**; then close with this limit: **Later statutes altered parts of the architecture; cite the judgment for its directions and trajectory, then state the current amended law.**

Prelims trap

Do not claim Vineet Narain created CBI, gave CVC control over all CBI work, or made investigation unaccountable.

Mains use

Use the case as the historical foundation for current sections 4, 4A and 4B and the CVC Act.

Recap

statutory vigilance + corruption oversight + secure Director + no rank-based executive shield.

SESSION 17 - SECTION 6A HISTORY, SUBRAMANIAN SWAMY, SECTION 17A AND SECTION 19

VISUAL FIRST

```

SINGLE DIRECTIVE (executive) ---- struck down in VINEET NARAIN
      |
DSPE SECTION 6A (statutory senior-rank approval)
      |
SUBRAMANIAN SWAMY (2014): struck down under Article 14

CURRENT DISTINCT GATES UNDER PC ACT
s.17A: prior approval before inquiry/investigation of
       recommendation/decision in official functions
       exception: on-the-spot undue-advantage arrest
s.19 : sanction before court takes cognizance of specified offences
  
```

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

Former DSPE section 6A created rank-based prior approval for investigation of senior officers and was invalidated in 2014; current PC Act sections 17A and 19 operate at different stages and on different statutory tests.

Answer-grabbing line

The equality defect in section 6A cannot be used to erase today's distinct decision-linked investigation approval and prosecution-sanction gates.

Must-write keywords

section 6A; Article 14; Subramanian Swamy 2014; PC Act section 17A; official decision; trap case; section 19; cognizance

Claim -> named evidence -> analysis -> qualification

- **Claim:** Rank-based immunity and function-linked procedural protection are legally different designs.
- **Named evidence:** Subramanian Swamy v Director, CBI (2014); Prevention of Corruption Act sections 17A and 19.
- **Analysis:** Section 6A protected a senior rank as a class and impeded even preliminary investigation; section 17A asks whether the allegation relates to a recommendation or decision in official duties, while section 19 governs the later court-cognizance stage.
- **Qualification:** Section 17A applicability is fact-sensitive and contains the on-the-spot undue-advantage exception; approval or sanction is not a finding of innocence or guilt.

Evidence and explanation

- [FACT] The Constitution Bench struck down DSPE section 6A as violating Article 14.
- [FACT] Section 17A requires previous approval before enquiry, inquiry or investigation into specified decision-linked official conduct.
- [FACT] No section 17A approval is needed for an on-the-spot arrest for accepting or attempting to accept undue advantage.
- [FACT] Section 19 concerns prior sanction before a court takes cognizance of specified PC Act offences.

Evidence checkpoint

Prove **Rank-based immunity and function-linked procedural protection are legally different designs.** with **Subramanian Swamy v Director, CBI (2014); Prevention of Corruption Act sections 17A and 19.**; explain that **Section 6A protected a senior rank as a class and impeded even preliminary investigation; section 17A asks whether the allegation relates to a recommendation or decision in official duties, while section 19 governs the later court-cognizance stage.**; then close with this limit: **Section 17A applicability is fact-sensitive and contains the on-the-spot undue-advantage exception; approval or sanction is not a finding of innocence or guilt.**

Prelims trap

Do not say Subramanian Swamy invalidated section 17A, or merge investigation approval with prosecution sanction.

Mains use

Use a stage table: before investigation (17A where attracted), investigation, sanction for cognizance (19), trial and judgment.

Recap

6A rank shield invalid; 17A decision-linked pre-investigation gate; 19 pre-cognizance prosecution gate.

SESSION 18 - CBI DIRECTOR: APPOINTMENT, TENURE, EXTENSION AND TRANSFER

VISUAL FIRST

DSPE s.4A COMMITTEE

PM (Chair) + Lok Sabha LoP/largest opposition leader
+ CJI or nominated Supreme Court judge

|
panel from IPS: seniority + integrity +
anti-corruption investigation experience

|
Central Government appoints Director

s.4B: minimum 2 years

extension: public interest + same committee + written reasons
one year at a time; aggregate maximum 5 years

transfer: previous consent of s.4A committee

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

The current DSPE Act disperses CBI Director selection across government, opposition and judiciary; protects a two-year minimum; permits conditional annual extension up to five years in aggregate; and requires committee consent for transfer.

Answer-grabbing line

The two-year floor protects continuity, while committee-based annual extension and a five-year ceiling prevent continuation from becoming an automatic entitlement.

Must-write keywords

section 4A; Prime Minister; Leader of Opposition; CJI nominee; IPS panel; section 4B; two-year floor; written reasons; aggregate five years; transfer consent

Claim -> named evidence -> analysis -> qualification

- **Claim:** Selection, minimum tenure, extension and transfer address four different independence risks.
- **Named evidence:** DSPE Act sections 4A and 4B; Lokpal Act amendments effective 16 January 2014; 2014 LoP-substitute amendment; DSPE Amendment Act, 2021.
- **Analysis:** Plural selection limits unilateral choice; a minimum term protects continuity; transfer consent blocks disguised ouster; annual reasoned extensions require fresh institutional approval rather than a flat five-year appointment.
- **Qualification:** The section 4A committee itself recommends the IPS panel; do not invent a separate CVC-chaired eligibility panel for the Director under current law.

Evidence and explanation

- [FACT] The Central Government appoints on the section 4A committee's recommendation.
- [FACT] Where no recognised LoP exists, the leader of the single largest opposition party in Lok Sabha is the statutory substitute.
- [FACT] The committee chooses an IPS panel on seniority, integrity and anti-corruption investigation experience.
- [FACT] Each extension is up to one year at a time in public interest, on committee recommendation and written reasons, within five years total.

Evidence checkpoint

Prove **Selection, minimum tenure, extension and transfer address four different independence risks**. with **DSPE Act sections 4A and 4B; Lokpal Act amendments effective 16 January 2014; 2014 LoP-substitute amendment; DSPE Amendment Act, 2021.**; explain that **Plural selection limits unilateral choice; a minimum term protects continuity; transfer consent blocks disguised ouster; annual reasoned extensions require fresh institutional approval rather than a flat five-year appointment.**; then close with this limit: **The section 4A committee itself recommends the IPS panel; do not invent a separate CVC-chaired eligibility panel for the Director under current law.**

Prelims trap

Do not state an automatic five-year tenure or put the Home Minister/CVC on the current Director appointment committee.

Mains use

Evaluate the annual-extension incentive while preserving the distinction between valid framework and possible misuse in a particular decision.

Recap

PM-LoP-CJI committee; IPS criteria; two-year floor; conditional yearly extension; five-year ceiling; committee transfer consent.

SESSION 19 - ALOK KUMAR VERMA AND SENIOR PERSONNEL/PROSECUTION ARCHITECTURE

VISUAL FIRST

DIRECTOR PROTECTION

formal transfer OR transfer-like divestment of powers

|

ALOK KUMAR VERMA (2019)

section 4A committee safeguard cannot be bypassed by label

OTHER SENIOR POSTS

s.4C committee: CVC (Chair) + VCs + Home Secretary + Personnel Secretary
consult Director -> SP and above appointment/tenure recommendation

s.4BA Director of Prosecution

Central Government appoints on CVC recommendation

minimum 2 years; overall supervision/control of CBI Director

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

The Director's statutory protection extends to transfer-like divestment of powers, while separate CVC-chaired and prosecution provisions govern other senior DSPE posts and the Directorate of Prosecution.

Answer-grabbing line

Independence safeguards follow the substance of an action, but the law deliberately uses different appointment routes for the Director, senior police posts and prosecution leadership.

Must-write keywords

Alok Kumar Verma 2019; divestment; transfer-equivalent; section 4C; SP and above; section 4BA; Director of Prosecution

Claim -> named evidence -> analysis -> qualification

- **Claim:** Procedural safeguards cannot be defeated by relabelling an ouster as an interim administrative measure.
- **Named evidence:** Alok Kumar Verma v Union of India (8 January 2019); DSPE Act sections 4BA and 4C.
- **Analysis:** The case protects institutional continuity at the top; section 4C adds plural input for SP-and-above staffing; section 4BA separates prosecution leadership while keeping overall supervision in the CBI Director.
- **Qualification:** The judgment restored statutory process; it did not grant the Director immunity from lawful committee action or investigation.

Evidence and explanation

- [FACT] The Supreme Court set aside orders divesting the Director of powers because the statutory committee process had been bypassed.
- [FACT] Section 4C's committee is CVC-led and covers SP-and-above posts except Director after consulting the Director.

- [FACT] The Director of Prosecution is at least Joint Secretary rank and conducts prosecution of cases under the Act.
- [FACT] The Central Government appoints the Director of Prosecution on CVC recommendation; minimum tenure is two years.

Evidence checkpoint

Prove **Procedural safeguards cannot be defeated by relabelling an ouster as an interim administrative measure.** with **Alok Kumar Verma v Union of India (8 January 2019)**; **DSPE Act sections 4BA and 4C.**; explain that **The case protects institutional continuity at the top; section 4C adds plural input for SP-and-above staffing; section 4BA separates prosecution leadership while keeping overall supervision in the CBI Director.**; then close with this limit: **The judgment restored statutory process; it did not grant the Director immunity from lawful committee action or investigation.**

Prelims trap

Do not confuse section 4A Director selection with the section 4C CVC-chaired senior-post committee.

Mains use

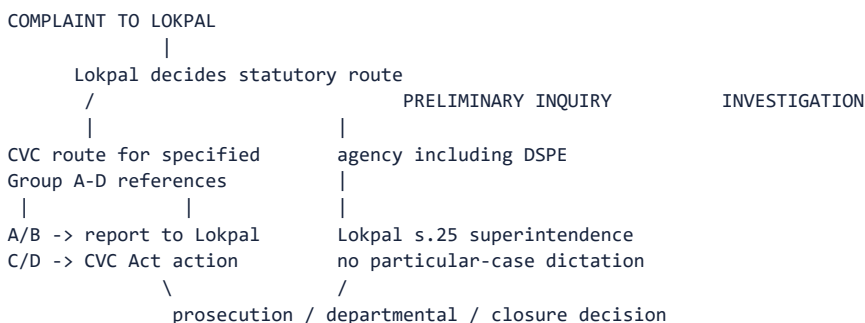
Use Alok Verma to show why tenure protection must cover functional displacement, not merely a formal transfer order.

Recap

Director: section 4A committee; SP+ posts: section 4C CVC committee; prosecution head: section 4BA.

SESSION 20 - LOKPAL-CVC-CBI INTERFACE UNDER THE 2013 ACT

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

The Lokpal Act creates a special complaint, preliminary-inquiry, investigation and supervision interface with CVC and DSPE rather than making all three bodies a permanent hierarchy.

Answer-grabbing line

Lokpal changes the route for referred matters, not the legal identity of CVC or CBI.

Must-write keywords

Lokpal Act 2013; section 20; Group A-B; Group C-D; CVC reference; section 25; superintendence; transfer approval

Claim -> named evidence -> analysis -> qualification

- **Claim:** Referral-specific authority can override ordinary superintendence without merging institutions.
- **Named evidence:** Lokpal and Lokayuktas Act sections 20 and 25; corresponding CVC Act amendments including sections 8A and 8B.
- **Analysis:** The design uses CVC's vigilance network for preliminary inquiry and DSPE's police capacity for investigation, while Lokpal retains decision and supervision powers for matters referred under its Act.

- **Qualification:** For Groups A-B, CVC reports the preliminary inquiry to Lokpal; for Groups C-D, CVC proceeds under the amended CVC Act framework. Exact procedure depends on the Lokpal route selected.

Evidence and explanation

- [FACT] Section 20 permits Lokpal to route specified Group A-D preliminary-inquiry complaints to CVC.
- [FACT] CVC reports Group A-B preliminary inquiries back to Lokpal for statutory decision.
- [FACT] For Group C-D references, CVC proceeds under its amended Act, including sections 8A-8B.
- [FACT] Section 25 gives Lokpal superintendence over DSPE matters referred by it and protects investigating officers from transfer without Lokpal approval.

Evidence checkpoint

Prove **Referral-specific authority can override ordinary superintendence without merging institutions.** with **Lokpal and Lokayuktas Act sections 20 and 25; corresponding CVC Act amendments including sections 8A and 8B.**; explain that **The design uses CVC's vigilance network for preliminary inquiry and DSPE's police capacity for investigation, while Lokpal retains decision and supervision powers for matters referred under its Act.**; then close with this limit: **For Groups A-B, CVC reports the preliminary inquiry to Lokpal; for Groups C-D, CVC proceeds under the amended CVC Act framework. Exact procedure depends on the Lokpal route selected.**

Prelims trap

Do not describe Lokpal as CBI's permanent administrative superior or CVC as deciding every Lokpal complaint.

Mains use

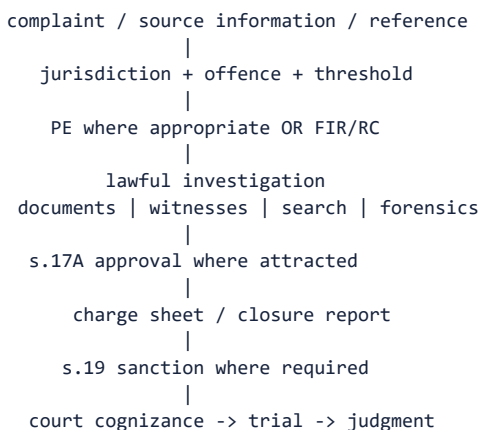
Use the referral map to explain coordination without collapsing vigilance, investigation and prosecution.

Recap

Lokpal receives and routes; CVC conducts specified preliminary inquiry; DSPE investigates; special superintendence attaches only to referred matters.

SESSION 21 - INVESTIGATION, PROSECUTION AND COURT: THE COMPLETE CASE LIFECYCLE

VISUAL FIRST



Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

A corruption case moves through legally distinct threshold, investigation, approval, prosecution and adjudication stages; no stage may be treated as proof of the next.

Answer-grabbing line

CBI gathers and presents evidence, the prosecution advances the case, and the court alone converts proof beyond reasonable doubt into conviction.

Must-write keywords

preliminary enquiry; FIR/Regular Case; cognizable offence; evidence; final report; charge sheet; closure; sanction; cognizance; trial

Claim -> named evidence -> analysis -> qualification

- **Claim:** Due process is a sequence of evidentiary thresholds, not an obstacle external to anti-corruption effectiveness.
- **Named evidence:** Lalita Kumari v Government of Uttar Pradesh; CBI v Thommandru Hannah Vijayalakshmi (2021); PC Act sections 17A and 19.
- **Analysis:** Direct FIR registration is permissible when information discloses a cognizable offence; preliminary enquiry can screen uncertain information but cannot become indefinite delay. Later approvals, prosecution and trial test different legal questions.
- **Qualification:** A preliminary enquiry is not mandatory in every corruption case and is not a right of the proposed accused.

Evidence and explanation

- [FACT] Thommandru confirms that CBI may register a Regular Case directly when cognizable-offence information exists.
- [FACT] Investigation may end in a charge sheet or closure report; the court considers the report.
- [FACT] Prosecution sanction does not establish guilt, and refusal does not rewrite the underlying facts.
- [FACT] Presumption of innocence continues through investigation and prosecution.

Evidence checkpoint

Prove **Due process is a sequence of evidentiary thresholds, not an obstacle external to anti-corruption effectiveness.** with **Lalita Kumari v Government of Uttar Pradesh; CBI v Thommandru Hannah Vijayalakshmi (2021); PC Act sections 17A and 19.**; explain that **Direct FIR registration is permissible when information discloses a cognizable offence; preliminary enquiry can screen uncertain information but cannot become indefinite delay. Later approvals, prosecution and trial test different legal questions.**; then close with this limit: **A preliminary enquiry is not mandatory in every corruption case and is not a right of the proposed accused.**

Prelims trap

Do not write PE -> FIR -> arrest -> conviction as an automatic chain.

Mains use

Use the lifecycle to place section 17A, section 19, CVC review and the Director of Prosecution in their proper stages.

Recap

threshold -> lawful investigation -> final report -> sanction/cognizance -> trial -> court verdict.

SESSION 22 - FEDERALISM, CONTROL ALLEGATIONS, CAPACITY PROBLEMS AND REFORMS

VISUAL FIRST

STRUCTURAL RISKS	MATCHED REFORMS
resolution-based CBI status	-> dedicated law after federal consultation
executive staffing/budget	-> protected, audited functional capacity
consent disputes	-> lawful model protocols and joint teams
deputation gaps	-> stable multidisciplinary cadre
forensic delay	-> laboratories, digital evidence standards
sanction/prosecution delay	-> time tracking and reasoned decisions
selective-use perception	-> auditable allocation and recusals
weak reporting	-> aggregate parliamentary scrutiny

Caption: The diagram isolates the legal mechanism and the boundary most likely to be tested.

Definition

CVC-CBI performance is shaped by institutional law, federal trust, personnel, forensics, prosecution coordination, transparency and the risk of improper political control.

Answer-grabbing line

The reform goal is neither a 'caged' agency nor an unanswerable police force, but operational insulation within federal, statutory, parliamentary and judicial limits.

Must-write keywords

federalism; political control allegation; general consent; manpower; deputation; forensics; prosecution delay; statutory charter; audit; parliamentary accountability

Claim -> named evidence -> analysis -> qualification

- **Claim:** Every autonomy reform needs a reciprocal accountability safeguard.
- **Named evidence:** Vineet Narain safeguards; DSPE sections 4-6; CVC annual-report architecture; recurrent parliamentary and administrative reform debate.
- **Analysis:** Staffing and budget dependence can influence capacity; consent disputes can delay cross-border cases; weak forensics can reduce evidentiary quality; sanction and prosecution delays can neutralise investigation. Transparent criteria and protected professional systems answer these mechanisms better than slogans.
- **Qualification:** Allegations of political misuse require case-specific evidence; structural vulnerability is not proof that every investigation is controlled.

Evidence and explanation

- [FACT] A dedicated CBI law remains a reform proposal, not current law.
- [FACT] A permanent multidisciplinary cadre must retain external accountability and federal sensitivity.
- [FACT] Consent protocols cannot amend section 6 by executive convenience.
- [FACT] Parliamentary reporting should use aggregate data without prejudicing live investigations or trials.
- [FACT] CVC reforms should strengthen CVO independence, reasoned compliance and preventive vigilance without granting conviction power.

Evidence checkpoint

Prove **Every autonomy reform needs a reciprocal accountability safeguard.** with **Vineet Narain safeguards; DSPE sections 4-6; CVC annual-report architecture; recurrent parliamentary and administrative reform debate.**; explain that **Staffing and budget dependence can influence capacity; consent disputes can delay cross-border cases; weak forensics can reduce evidentiary quality; sanction and prosecution delays can neutralise investigation. Transparent criteria and protected professional systems answer these mechanisms better than slogans.**; then close with this limit: **Allegations of political misuse require case-specific evidence; structural vulnerability is not proof that every investigation is controlled.**

Prelims trap

Do not convert 'caged parrot' criticism into a binding rule invalidating all CBI work.

Mains use

Conclude with operational independence + legal answerability + cooperative federalism + due process.

Recap

clear law, professional capacity, lawful federal coordination, auditable decisions, timely prosecution and court-controlled guilt.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which formulation is legally most accurate?

A. CVC is statutory; CBI is executive-created; DSPE supplies the principal statutory police powers used by CBI investigators. B. CVC and CBI are both constitutional bodies, while DSPE is merely an internal manual. C. CBI was created by the CVC Act, 2003 and CVC by the DSPE Act, 1946. D. CBI's 1963 resolution alone supplies unlimited police power throughout India.

Answer: A.

Option-specific explanations:

- **A:** This preserves all three identities and traces coercive police authority to statute rather than organisational reputation.
- **B:** Neither institution is constitutional, and the DSPE Act is parliamentary law rather than an internal instruction.
- **C:** The statutes do not cross-create the institutions: CVC Act creates statutory CVC; DSPE Act constitutes DSPE.
- **D:** An executive resolution cannot displace offence notification, territory, State consent, criminal procedure or court control.

Examiner trap 1: 'Non-statutory CBI' does not mean 'non-statutory police powers'; always add the DSPE layer.

MCQ 2. Chronology

Consider the following sequence: 1. Special Police Establishment; 2. DSPE Act; 3. CBI resolution; 4. CVC resolution; 5. Vineet Narain; 6. CVC Act. Which order is correct?

A. 2-1-3-4-6-5 B. 1-2-3-4-5-6 C. 1-3-2-4-6-5 D. 4-1-2-3-5-6

Answer: B.

Option-specific explanations:

- **A:** The DSPE Act followed, rather than preceded, the 1941 SPE, and the 2003 Act followed Vineet Narain.
- **B:** The sequence is 1941, 1946, 1963, 1964, 1997 and 2003; the 1998 Ordinance is the interim statutory bridge.
- **C:** CBI's 1963 organisation did not precede the 1946 statutory police establishment.
- **D:** The CVC resolution arose in 1964, after the wartime and CBI stages.

Examiner trap 2: distinguish institutional origin, enactment, judgment and later statutory status rather than sorting only by names.

MCQ 3. Role firewall

Which institution finally determines criminal guilt in a CBI-investigated corruption case?

A. Central Vigilance Commission, because it superintends PC Act investigations B. CBI Director, because the Director administers DSPE C. The competent court after cognizance and trial D. Chief Vigilance Officer of the concerned department

Answer: C.

Option-specific explanations:

- **A:** CVC supervises and advises but neither convicts nor sentences.
- **B:** Administrative command over an investigating establishment does not include judicial guilt determination.
- **C:** Only the court applies the criminal standard of proof and may acquit or convict after due process.
- **D:** A CVO coordinates departmental vigilance and may support referral, not criminal adjudication.

Examiner trap 3: FIR, arrest, charge sheet and conviction are four different legal thresholds.

MCQ 4. CVC composition

Under section 3 of the CVC Act, the Commission consists of

A. one Central Vigilance Commissioner and exactly three Vigilance Commissioners. B. one Central Vigilance Commissioner alone unless Parliament appoints experts. C. a judicial Chairperson, two police members and one finance member. D. one Central Vigilance Commissioner and not more than two Vigilance Commissioners.

Answer: D.

Option-specific explanations:

- **A:** The statutory ceiling is two Vigilance Commissioners, not three.
- **B:** The Act creates a multi-member design and does not condition member appointment on a fresh parliamentary vote.
- **C:** Section 3 uses experience categories, not a compulsory judicial-police-finance seat formula.
- **D:** This reproduces the statutory maximum: one Chairperson plus up to two Members.

Examiner trap 4: 'not more than two' is a ceiling, not a command that both posts must always be occupied.

MCQ 5. CVC qualifications

Which statement best reflects section 3's qualification design?

A. It uses public-service and central public-sector specialist categories, with not more than two appointees from either category if all three offices are filled. B. Every appointee must be a retired Supreme Court judge. C. Only serving Indian Police Service officers are eligible. D. The Act contains no experience qualifications and leaves them entirely to executive rules.

Answer: A.

Option-specific explanations:

- **A:** The two categories cover administration including police administration and specified finance, law, vigilance and investigation expertise, with a category cap.
- **B:** Judicial office is not a mandatory qualification for CVC or VC.
- **C:** IPS experience may fit one route, but section 3 is broader than a serving-police-only rule.
- **D:** The experience fields and category-balance proviso are stated in section 3 itself.

Examiner trap 5: do not confuse a high-integrity office with a compulsory judicial-member model.

MCQ 6. CVC appointment committee

Who is not a member of the committee recommending appointment of the Central Vigilance Commissioner?

A. Prime Minister B. Chief Justice of India C. Union Home Minister D. Leader of Opposition in the Lok Sabha or statutory substitute

Answer: B.

Option-specific explanations:

- **A:** The Prime Minister chairs the three-member recommending committee.
- **B:** The CJI belongs to the CBI Director committee, not the CVC appointment committee.
- **C:** The Union Home Minister is the executive member named by section 4.
- **D:** The opposition member, with the statutory substitute where needed, supplies plural political input.

Examiner trap 6: the easiest wrong option is a true member of another anti-corruption appointment committee.

MCQ 7. CVC tenure and service

A Vigilance Commissioner serves for two years and is then appointed Central Vigilance Commissioner. Ignoring the age ceiling, what is the maximum additional Commission service available under the aggregate rule?

A. Four years, because the CVC appointment restarts the clock B. Three years, because the CVC term is five years C. Two years, because VC plus CVC service cannot exceed four years D. No limit, because only the age ceiling applies

Answer: C.

Option-specific explanations:

- **A:** A later appointment does not erase service already rendered as VC.
- **B:** The ordinary statutory term is four years or age sixty-five, not five years.
- **C:** Two years already served leave at most two years within the aggregate four-year cap.
- **D:** Both a duration cap and an age ceiling apply.

Examiner trap 7: distinguish the ordinary term from the special aggregate VC-to-CVC service ceiling.

MCQ 8. CVC removal

Which is a listed direct statutory ground on which the President may remove a CVC/VC without first using the proved-misbehaviour Supreme Court inquiry route?

A. Disagreement with a CVC minority opinion B. Criticism by a parliamentary committee C. Failure to secure Cabinet confidence D. Being adjudged insolvent

Answer: D.

Option-specific explanations:

- **A:** Internal disagreement is not a removal ground and can be part of multi-member deliberation.
- **B:** Legislative criticism does not substitute for the statutory removal grounds.
- **C:** The office is not held at ordinary Cabinet pleasure.
- **D:** Insolvency is one of the direct objective grounds separately listed in section 6.

Examiner trap 8: keep proved misbehaviour/incapacity separate from insolvency, moral-turpitude conviction, outside paid work, infirmity and prejudicial interest.

MCQ 9. Section 8 functions

Which combination belongs to CVC's section 8 functions?

A. Review relevant DSPE investigations, review prosecution-sanction applications, advise covered central bodies and supervise vigilance administration. B. Conduct every criminal trial involving a Central Government employee. C. Exercise ordinary policing throughout every State without consent. D. Issue binding sentences and disqualify elected representatives.

Answer: A.

Option-specific explanations:

- **A:** These are express supervisory, review, advisory and vigilance-administration functions.
- **B:** Trial belongs to the competent court, not CVC.
- **C:** CVC lacks general police power, and DSPE State-area authority has separate gates.
- **D:** CVC does not possess general criminal-sentencing or electoral-disqualification jurisdiction.

Examiner trap 9: a broad function list becomes wrong when one police or judicial verb is smuggled into it.

MCQ 10. Case-dictation boundary

While exercising superintendence or giving directions, CVC may

A. require DSPE to arrest a named person regardless of evidence. B. monitor systemic progress but not require a particular case to be investigated or disposed of in a particular manner. C. write the final police report for the investigating officer. D. direct the trial court to convict.

Answer: B.

Option-specific explanations:

- **A:** Arrest requires lawful investigative judgment and statutory conditions, not an outcome command.
- **B:** This states the section 8 proviso's system-oversight/particular-case boundary.
- **C:** The final report is the investigating agency's statutory responsibility.
- **D:** CVC cannot direct judicial outcome or displace the court.

Examiner trap 10: 'directions' is true only when read with the immediate non-dictation proviso.

MCQ 11. Advice and disagreement

If a covered organisation disagrees with CVC advice under the section 17 framework, it must

A. obtain State consent. B. treat the advice as automatically void. C. record reasons in writing and communicate them to CVC. D. seek prior approval of the Supreme Court in every case.

Answer: C.

Option-specific explanations:

- **A:** State consent concerns DSPE territorial exercise, not disagreement with vigilance advice.
- **B:** The Act does not permit silent disregard without the accountability step.
- **C:** Written, communicated reasons preserve competent-authority responsibility while enabling scrutiny.
- **D:** Supreme Court inquiry is relevant to removal for proved misconduct/incapacity, not routine advice disagreement.

Examiner trap 11: non-binding advice is not consequence-free advice; reason-giving is the statutory accountability device.

MCQ 12. PIDPI

Which statement accurately describes CVC's whistle-blower role?

A. It arises only from a fully commenced Whistle Blowers Protection Act in every context. B. Anonymous complaints must always be treated as protected PIDPI disclosures. C. PIDPI authorises CVC to convict the person complained against. D. CVC is the designated agency under the 2004 PIDPI Resolution for protected written disclosures within its applicable field.

Answer: D.

Option-specific explanations:

- **A:** The controlled operative authority used here is the PIDPI Resolution; the 2014 Act should not be assumed operative without commencement verification.
- **B:** PIDPI procedure requires identifiable protected disclosure and does not convert anonymous or pseudonymous material into the protected route.
- **C:** The mechanism enables examination and recommended action, not criminal adjudication.
- **D:** This preserves the correct source, designated-agency role and bounded complaint field.

Examiner trap 12: distinguish confidentiality of identity from anonymity of the complaint.

MCQ 13. CVO system

A departmental Chief Vigilance Officer is best described as

A. an internal vigilance node for prevention, complaint scrutiny and disciplinary coordination, with criminal referral where warranted. B. the final criminal court for departmental corruption. C. a constitutional officer superior to CVC. D. an officer with inherent DSPE police power in every State.

Answer: A.

Option-specific explanations:

- **A:** The description captures preventive and punitive vigilance without transferring police or judicial powers.
- **B:** Criminal guilt belongs to courts and service penalties to the competent disciplinary authority.
- **C:** CVOs arise from the vigilance-administration framework, not the Constitution.
- **D:** A CVO does not acquire DSPE jurisdiction merely by coordinating a complaint.

Examiner trap 13: internal access to files is an administrative advantage, not a source of arrest or conviction power.

MCQ 14. DSPE section 2

The baseline territorial police powers of DSPE under section 2 are associated with

A. all States without further authority. B. Union Territories, subject to the Act. C. foreign countries through INTERPOL. D. only offences referred by Lokpal.

Answer: B.

Option-specific explanations:

- **A:** State-area exercise ordinarily requires sections 5 and 6 or an independent court route.
- **B:** Section 2 supplies the Union Territory baseline for the statutory police establishment.
- **C:** INTERPOL coordination does not itself confer domestic or foreign coercive jurisdiction.
- **D:** Lokpal reference is one special route, not the origin of all DSPE powers.

Examiner trap 14: identify territory before discussing consent; Union Territory and State routes are different.

MCQ 15. DSPE section 3

Under section 3, the offences or classes of offences investigated by DSPE are specified by

A. the CVC through its annual report. B. each High Court through standing rules. C. the Central Government by notification. D. the CBI Director through an internal press release.

Answer: C.

Option-specific explanations:

- **A:** CVC reporting reviews functioning but does not replace offence notification.
- **B:** Courts may direct a particular investigation, but section 3 notification is an executive statutory function.
- **C:** The Central Government notification supplies the subject-matter gate.
- **D:** Internal communication cannot substitute for a statutory notification.

Examiner trap 15: a court-directed case still needs legal offence competence; the court order and section 3 notification answer different questions.

MCQ 16. DSPE section 4

Which statement correctly states the current superintendence architecture?

A. CVC superintends every CBI matter, including all special crimes and administration. B. Central Government superintends every PC Act investigation without qualification. C. State Governments jointly administer the CBI Director. D. CVC superintends PC Act investigations; Central Government superintends other DSPE matters; administration vests in the Director, subject to special law.

Answer: D.

Option-specific explanations:

- **A:** CVC's field is corruption-specific and does not include all CBI work or Director administration.
- **B:** Section 4(1) assigns the PC Act investigation field to CVC.
- **C:** State consent limits territorial exercise but does not create joint administration of the Director.
- **D:** This reproduces subsections (1)-(3) and leaves room for Lokpal's referred-matter override.

Examiner trap 16: separate superintendence by subject from administration of the police establishment.

MCQ 17. Sections 5 and 6

For the ordinary executive route into a State, which sequence is most accurate?

A. Section 3 notified offence -> section 5 extension order -> section 6 State consent. B. Section 6 consent -> constitutional amendment -> automatic nationwide power. C. CVC advice -> State Governor's judicial warrant -> trial. D. CBI resolution -> no further jurisdictional step.

Answer: A.

Option-specific explanations:

- **A:** The sequence preserves subject-matter, extension and federal-consent gates.
- **B:** Consent is statutory, not a constitutional amendment, and it does not create automatic nationwide authority.
- **C:** CVC advice and gubernatorial action are not the statutory section 5-6 route.
- **D:** The 1963 resolution cannot override the DSPE Act's territorial limits.

Examiner trap 17: section 5 power and section 6 consent are cumulative, not alternative.

MCQ 18. General and specific consent

Which distinction is correct?

A. General consent comes only from constitutional courts; specific consent comes only from Parliament. B. General consent is standing permission for defined categories; specific consent is tied to a named case, facts or persons. C. General consent applies only to Union Territories. D. Specific consent always continues after any later statutory change regardless of its terms.

Answer: B.

Option-specific explanations:

- **A:** Both are State-government consent instruments in the ordinary DSPE route, not court/Parliament substitutes.
- **B:** The difference is breadth and continuing scope, with both controlled by their precise text.
- **C:** Union Territory baseline comes from section 2 and does not require this State-consent classification.
- **D:** No consent instrument should be read beyond its wording, duration and governing law.

Examiner trap 18: 'general' means standing and defined, not unlimited.

MCQ 19. Withdrawal of consent

A State withdraws general consent after a DSPE investigation was validly instituted. Which is the safest proposition?

A. Every completed investigative act becomes void retrospectively. B. CBI obtains permanent power to start all future cases. C. The existing investigation does not automatically terminate, but new cases ordinarily need a fresh authority route. D. The withdrawal necessarily binds the Supreme Court under Article 32.

Answer: C.

Option-specific explanations:

- **A:** Kazi Lhendup Dorji rejects automatic retrospective destruction of validly initiated investigations.
- **B:** Continuity of an existing case does not create unlimited future jurisdiction.
- **C:** This states prospective withdrawal and preserves the requirement of consent/order for later cases.
- **D:** A State instrument cannot curtail constitutional judicial review.

Examiner trap 19: ask whether the case began before or after withdrawal; timing changes the answer.

MCQ 20. Constitutional court route

According to the Constitution Bench in CPDR, a High Court may direct a CBI investigation without State consent

A. whenever a political party demands it. B. because section 6 has been repealed. C. only after the Union Cabinet certifies failure of State police. D. under Article 226 in exceptional situations, because constitutional judicial review is not controlled by section 6.

Answer: D.

Option-specific explanations:

- **A:** Political demand is not the constitutional threshold.
- **B:** Section 6 remains part of the ordinary executive route.
- **C:** The Constitution does not make Cabinet certification a precondition to Article 226.
- **D:** This preserves the independent constitutional source and the Court's caution.

Examiner trap 20: the court does not 'grant deemed consent'; it exercises a different legal power.

MCQ 21. Vineet Narain

Which was part of the Vineet Narain safeguard trajectory?

- A. Statutory CVC, corruption-investigation oversight, minimum Director tenure and invalidation of the Single Directive.
B. Abolition of State consent for all CBI investigations. C. Conversion of CBI into a constitutional court. D. Automatic five-year tenure for every CBI Director.

Answer: A.

Option-specific explanations:

- **A:** These safeguards addressed institutional independence and later influenced statutory design.
- **B:** The judgment did not erase DSPE section 6 federalism.
- **C:** It strengthened investigation architecture without changing CBI into a court.
- **D:** The two-year floor belongs to the safeguard; conditional extension up to five years came much later.

Examiner trap 21: separate the 1997 judicial directions from the 2021 extension amendment.

MCQ 22. Former section 6A

Subramanian Swamy v Director, CBI (2014) struck down former DSPE section 6A because it

- A. required State consent for Union Territory cases. B. created a rank-based prior-approval shield for senior officers that violated Article 14. C. gave courts power under Article 226. D. required written reasons for CVC disagreement.

Answer: B.

Option-specific explanations:

- **A:** Section 6A concerned Central approval for specified senior officials, not State territorial consent.
- **B:** The Constitution Bench rejected status-based investigative protection as an unequal anti-corruption barrier.
- **C:** Article 226 power was addressed in CPDR, not created by section 6A.
- **D:** Written disagreement belongs to the CVC advice framework.

Examiner trap 22: section 6A and section 6 sound similar but concern different approvals and different governments.

MCQ 23. PC Act section 17A

Section 17A generally concerns previous approval before enquiry, inquiry or investigation when the alleged PC Act offence is relatable to

- A. any private contract dispute. B. every arrest made by police. C. a public servant's recommendation or decision in discharge of official functions, subject to the statutory on-the-spot undue-advantage exception. D. court cognizance after the charge sheet.

Answer: C.

Option-specific explanations:

- **A:** The provision is confined to specified public-function decision allegations under the PC Act.
- **B:** It is not a universal arrest-approval code.
- **C:** This states both the functional nexus and the trap-case exception.
- **D:** Court cognizance is the stage addressed by section 19 sanction.

Examiner trap 23: section 17A is function-linked, not a revived senior-rank shield identical to old section 6A.

MCQ 24. PC Act section 19

Section 19 is best distinguished from section 17A because section 19 primarily governs

A. State consent before DSPE enters a State. B. CVC appointment procedure. C. notification of DSPE offences. D. previous sanction before the court takes cognizance of specified PC Act offences.

Answer: D.

Option-specific explanations:

- **A:** State consent is DSPE section 6.
- **B:** CVC appointment is governed by CVC Act section 4.
- **C:** DSPE offence classes are notified under section 3.
- **D:** Section 19 is the prosecution/cognizance gate, later than investigation approval.

Examiner trap 24: 'prior approval' and 'previous sanction' are not interchangeable merely because both precede something.

MCQ 25. CBI Director appointment

The current section 4A committee for CBI Director appointment consists of

A. Prime Minister, Lok Sabha LoP/largest opposition-party leader, and CJI or nominated Supreme Court judge. B. Prime Minister, Home Minister and Central Vigilance Commissioner. C. President, Speaker and Attorney General. D. CVC, Vigilance Commissioners, Home Secretary and Personnel Secretary.

Answer: A.

Option-specific explanations:

- **A:** This is the post-Lokpal high-powered committee, including the 2014 opposition substitute.
- **B:** This mixes the CVC appointment committee with a CBI post.
- **C:** None of these three together forms the statutory recommendation committee.
- **D:** This resembles the separate section 4C committee for SP-and-above posts, not the Director.

Examiner trap 25: three distinct panels exist in this topic; identify the post before recalling the members.

MCQ 26. Director tenure

Which description of CBI Director tenure is accurate after the 2021 amendment?

A. A flat five-year initial appointment with no review. B. A two-year minimum, with public-interest extension on section 4A committee recommendation and written reasons, one year at a time, up to five years total. C. One year at the pleasure of the Home Minister. D. An unlimited term until age sixty-five.

Answer: B.

Option-specific explanations:

- **A:** The amendment did not replace the initial protected floor with an automatic five-year term.
- **B:** Every element - public interest, committee recommendation, reasons, annual step and aggregate ceiling - matters.
- **C:** The Home Minister is not the unilateral tenure authority under section 4B.
- **D:** The DSPE Director provision uses duration and extension controls, not this age-based formula.

Examiner trap 26: 'maximum possible total' is not the same as 'ordinary tenure' or 'entitlement.'

MCQ 27. Alok Kumar Verma

The central statutory principle applied in Alok Kumar Verma (2019) was that

A. the Director is immune from all inquiry. B. only a document titled 'transfer order' can affect tenure. C. divesting the Director of powers can have transfer-like effect and cannot bypass the section 4A committee safeguard. D. CVC may permanently remove the Director without committee involvement.

Answer: C.

Option-specific explanations:

- **A:** The judgment restored process; it did not grant personal immunity.
- **B:** The Court examined substance and effect rather than the label attached to executive action.
- **C:** This is the precise procedural-insulation principle relevant to the case.
- **D:** CVC's oversight does not confer unilateral permanent-ouster power.

Examiner trap 27: institutional protection attaches to functional displacement, not only formal wording.

MCQ 28. Lokpal interface

Which statement correctly describes Lokpal's relationship with CVC and DSPE?

A. Lokpal permanently administers every CBI case. B. Every complaint automatically becomes a CBI FIR. C. CVC decides guilt in all Group A-B cases. D. Lokpal may route specified preliminary inquiries to CVC and has special superintendence over DSPE matters referred under its Act, subject to non-dictation limits.

Answer: D.

Option-specific explanations:

- **A:** Lokpal's special authority is reference-specific, not universal CBI administration.
- **B:** The Act contains scrutiny and route decisions rather than automatic criminal registration.
- **C:** CVC conducts specified inquiry functions and reports/acts as the statute provides; it does not adjudicate guilt.
- **D:** This preserves section 20 routing, section 25 superintendence and the particular-case boundary.

Examiner trap 28: 'notwithstanding DSPE section 4' applies to referred matters, not to the whole CBI organisation.

MCQ 29. Prosecution and court

Which sequence assigns the correct actor to each output?

A. CBI/DSPE investigates and submits a report; prosecution presents the case; court decides cognizance, trial and guilt. B. CVC investigates every case, prosecutes it and convicts. C. CVO arrests, CBI sentences and Parliament hears the appeal. D. Lokpal's annual report automatically becomes a criminal judgment.

Answer: A.

Option-specific explanations:

- **A:** The sequence respects police, prosecution and judicial functions.
- **B:** CVC has no universal police, prosecution or conviction bundle.
- **C:** CVO lacks general arrest power and CBI lacks sentencing power.
- **D:** Reporting creates accountability but not a judicial decree.

Examiner trap 29: ask what legal document each institution produces - advice, report, charge sheet, prosecution submission or judgment.

MCQ 30. CBI functional categories

Which is a stable, legally safe description of CBI work?

A. CBI is India's universal police for all offences. B. It has anti-corruption, economic-offence and special-crime work, plus support/INTERPOL coordination, each subject to lawful jurisdiction. C. It is the statutory money-laundering authority under PMLA. D. It is identical to the National Investigation Agency.

Answer: B.

Option-specific explanations:

- **A:** The federal and notified-offence architecture excludes universal inherent police power.
- **B:** The categories reflect stable organisational functions without claiming that a label overrides law.
- **C:** PMLA powers belong to the Enforcement Directorate's separate statutory field.
- **D:** NIA operates under a different scheduled-offence statute and jurisdiction design.

Examiner trap 30: organisational specialisation never removes the need to identify the controlling statute.

MCQ 31. Reform design

Which reform package best balances autonomy, federalism and accountability?

A. Remove all reporting, audit and judicial review. B. Allow the Union executive to ignore section 6 whenever it alleges urgency. C. Debate a dedicated CBI law, protect professional capacity, create lawful consent protocols, audit allocation/recusal and strengthen aggregate parliamentary reporting. D. Give CVC power to convict without trial.

Answer: C.

Option-specific explanations:

- **A:** An unreviewable police agency would replace political risk with coercive arbitrariness.
- **B:** Executive convenience cannot amend statutory federal consent.
- **C:** Each reform is matched to a diagnosed weakness and retains reciprocal controls.
- **D:** Conviction without a competent court would violate role separation and due process.

Examiner trap 31: a reform answer earns marks when every autonomy gain has an accountability control.

MCQ 32. Integrated scenario

A new PC Act case concerns an official decision by a State public servant after the State withdrew general consent. No constitutional court has ordered CBI investigation. Which is the most complete starting analysis?

A. CBI may proceed everywhere because PC Act is a Central law. B. CVC's superintendence itself supplies State consent and section 17A approval. C. Withdrawal retrospectively invalidates every older CBI case in the State. D. Check section 3 notification, section 5 extension, fresh section 6 authority, section 17A applicability/exception and the distinct later section 19 sanction stage.

Answer: D.

Option-specific explanations:

- **A:** A Central offence statute does not erase DSPE territorial federalism.
- **B:** CVC oversight cannot substitute for State consent or competent-authority approval under another statute.
- **C:** Prospective withdrawal does not automatically destroy validly initiated older cases.
- **D:** This option identifies subject, territory, entry authority, investigation approval and prosecution as separate gates.

Examiner trap 32: integrated questions are solved by a gate sequence, not by choosing the most powerful-sounding institution.

PYQS AND ANSWER PRACTICE

Verified-PYQ and official-key discipline

The audited repository routing identifies one direct Mains demand and one relevant 2026 objective matching demand. The Mains wording below is reproduced from the controlled official-paper record. The 2026 objective paper is reproduced, but no final official answer letter is claimed because the repository control records only a provisional key.

Verified Mains PYQ - UPSC Civil Services (Main) Examination 2021, GS-II, Question 11 - 15 marks, 250 words

"The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India."

Demand decoding: Explain the ordinary State-consent rule, the legal effect of withdrawal and the constitutional qualifications; then evaluate the balance in federal terms.

Model answer:

The CBI is an executive-created organisation whose police powers principally arise from the Delhi Special Police Establishment Act, 1946. **Claim:** State consent is a real federal gate in the ordinary route. **Evidence:** sections 5 and 6 permit Central extension of DSPE powers to a State area but require that State's consent; police and public order lie in State List Entries 2 and 1. **Analysis:** general consent facilitates routine cases, while specific consent preserves closer State control. Withdrawal ordinarily operates prospectively for new cases. **Qualification:** in *Kazi Lhendup Dorji v CBI* (1994), investigations validly begun before withdrawal were not automatically terminated.

The State veto is not absolute. **Claim:** constitutional courts retain an independent corrective route. **Evidence:** the Constitution Bench in *State of West Bengal v Committee for Protection of Democratic Rights* (2010) held that High Courts under Article 226 and the Supreme Court under Article 32 may direct CBI investigation without State consent. **Analysis:** judicial review and protection of fundamental rights cannot be curtailed by section 6. **Qualification:** the Court required sparing, cautious and exceptional use, preserving the ordinary responsibility of State police.

Thus Indian federalism rejects both an inherent all-India CBI police power and an unreviewable State shield. Cooperative consent protocols, neutral investigation and exceptional constitutional review provide the defensible balance.

Why this earns marks: It answers both halves of the question with sections 5-6, State List entries, *Kazi Lhendup Dorji* and *CPDR*, and ends with a qualified federal verdict.

Verified Prelims PYQ - UPSC Civil Services (Preliminary) Examination 2026, GS Paper I, Question 63

With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Official-key discipline: The question wording is controlled, but the available local answer-key record is provisional. No answer letter, row count or "official solution" is asserted here.

Exam method: Verify each row independently on three axes - organisation, assigned function and controlling ministry/department - before counting. A correct function cannot cure a wrong ministry, and a correct ministry cannot cure an inaccurate mandate.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Explain why the CBI's organisational creation and its police powers must be traced to different legal instruments.

Model answer:

CBI has a hybrid legal identity. **Claim:** its organisational form is executive-created. **Evidence:** the Government of India Resolution dated 1 April 1963 established the Central Bureau of Investigation and placed the Delhi Special Police Establishment within its investigative structure. **Analysis:** the resolution explains mandate and administration. **Qualification:** it cannot independently create coercive police jurisdiction.

Claim: core police powers are statutory. **Evidence:** the DSPE Act, 1946 constitutes the police establishment; section 2 supplies the Union Territory baseline, section 3 notified offences, sections 5-6 State extension and consent, and section 4 superintendence and administration. **Analysis:** arrest, search and investigation therefore depend on statute and criminal procedure. **Qualification:** calling CBI "non-statutory" does not mean its investigators act without law.

The precise answer is: CBI is organised by resolution, while DSPE provides its principal statutory police power. A dedicated CBI law remains a reform proposal, not current law.

Why this earns marks: The answer states the two legal sources, names operative sections, explains why the distinction matters and avoids the opposite errors of calling CBI statutory or lawless.

Original Mains 2 - 10 marks, 150 words

Differentiate departmental vigilance, CVC oversight, CBI investigation, prosecution and judicial adjudication.

Model answer:

Anti-corruption administration is a sequence, not a single authority. **Claim:** departmental vigilance prevents and processes misconduct. **Evidence:** Chief Vigilance Officers review systems, scrutinise complaints and coordinate disciplinary action. **Analysis:** proximity to records enables early risk correction. **Qualification:** CVOs are neither police nor final disciplinary authorities.

Claim: CVC provides statutory vigilance oversight. **Evidence:** section 8 of the CVC Act authorises supervision, inquiry routing, investigation and sanction review, advice and vigilance-administration control. **Analysis:** it connects departments with the anti-corruption system. **Qualification:** it cannot dictate a particular case or convict.

Claim: CBI/DSPE performs police investigation. **Evidence:** the DSPE Act supplies offence and territorial powers. It may submit a charge sheet or closure report. **Qualification:** State consent or another lawful route may be required.

Prosecution presents the State's case after applicable sanction; the competent court alone takes cognizance, conducts trial and determines guilt.

Why this earns marks: It assigns a distinct verb and output to every actor, uses CVC section 8 and the DSPE Act, and closes with the court's exclusive guilt-determination role.

Original Mains 3 - 15 marks, 250 words

Examine whether the CVC is an effective apex vigilance institution despite its advisory character.

Model answer:

The CVC Act, 2003 makes CVC the statutory apex of Union vigilance, but not a general anti-corruption police force.

Claim: institutional design provides independence. **Evidence:** section 3 creates a multi-member Commission; section 4 uses the PM-Home Minister-LoP committee; sections 5-6 provide fixed tenure, age ceiling and protected removal; expenses are charged on the Consolidated Fund. **Analysis:** these safeguards reduce ordinary executive pleasure.

Qualification: appointment remains executive-heavy, and a four-year ceiling may limit continuity.

Claim: section 8 creates meaningful system reach. **Evidence:** CVC superintends DSPE PC Act investigations, gives bounded directions, causes inquiry/investigation, reviews investigation and sanction progress, advises covered bodies and supervises vigilance administration. CVOs extend prevention into departments. **Analysis:** the Commission can connect systemic risk, case delay and disciplinary response. **Qualification:** it cannot dictate a particular case, exercise universal police power or determine guilt.

Claim: advice can still produce accountability. **Evidence:** section 17 requires written reasons for disagreement; section 14 requires an annual report with a separate DSPE part laid before Parliament. **Analysis:** reason-giving and publicity make non-acceptance reviewable institutionally. **Qualification:** formal reasons and weak follow-up can dilute impact.

Effectiveness therefore depends on timely appointments, professional CVOs, reasoned compliance, sanction tracking and legislative scrutiny. CVC is an important oversight hub, but its credibility rests on implementation rather than statutory status alone.

Why this earns marks: The model balances design, section 8 powers and advisory limits, names the reason-giving and reporting mechanisms, and ties each reform to a diagnosed weakness.

Original Mains 4 - 15 marks, 250 words

Analyse the distinction between section 17A approval and section 19 prosecution sanction under the Prevention of Corruption Act.

Model answer:

Sections 17A and 19 protect different stages of the anti-corruption process and should never be merged.

Claim: section 17A is an investigation-stage gate. **Evidence:** it requires previous approval before enquiry, inquiry or investigation where the alleged PC Act offence is relatable to a public servant's recommendation or decision in discharge of official functions. The competent authority depends on Union, State or other employment. **Analysis:** the provision seeks to protect honest official decision-making from vexatious criminal process. **Qualification:** it is fact-sensitive and does not apply when a person is arrested on the spot for accepting or attempting to accept undue advantage.

Claim: section 19 is a prosecution-stage gate. **Evidence:** it restricts a court from taking cognizance of specified PC Act offences without previous sanction from the competent government or authority. **Analysis:** it screens the transition from completed investigation to criminal prosecution. **Qualification:** sanction is not a finding that the accused is guilty or innocent.

Claim: CVC's role is review, not substitution. **Evidence:** CVC Act section 8 authorises review of pending prosecution-sanction applications. **Analysis:** monitoring can reduce delay. **Qualification:** the competent authority retains its statutory decision.

Thus the correct sequence is: jurisdiction and information threshold -> section 17A where attracted -> investigation -> final report -> section 19 sanction where required -> court cognizance and trial. Clear stage separation protects honest administration without confusing safeguards with impunity.

Why this earns marks: It identifies the trigger, authority, stage and exception for each provision, adds CVC's review role and finishes with a legally ordered lifecycle.

Original Mains 5 - 20 marks, 250 words

Critically analyse the State-consent architecture governing CBI investigations and its implications for Indian federalism.

Model answer:

CBI's State-area jurisdiction reflects a federal compromise: national investigative capacity operates through a police establishment whose ordinary reach is conditioned by State authority.

Claim: consent is a substantive federal gate. **Evidence:** DSPE section 5 permits Central extension of powers to a State area, while section 6 requires State consent; police and public order are State List Entries 2 and 1. **Analysis:** general consent enables routine defined cases, whereas specific consent preserves case-level control. **Qualification:** the instrument's exact offences, persons, territory and riders determine its scope.

Claim: withdrawal ordinarily operates prospectively. **Evidence:** *Kazi Lhendup Dorji v CBI* allowed investigations validly begun before withdrawal to continue. **Analysis:** this protects legal certainty and completed investigative steps. **Qualification:** it gives no permanent authority for new cases after withdrawal.

Claim: the State veto is not constitutionally absolute. **Evidence:** the Constitution Bench in *State of West Bengal v CPDR* held that High Courts under Article 226 and the Supreme Court under Article 32 may direct CBI investigation without consent. **Analysis:** judicial review and fundamental-rights protection cannot be reduced by statute. **Qualification:** the power must be sparing, cautious and exceptional.

Consent can prevent central overreach, yet politically tactical withdrawal may delay inter-State corruption cases. Conversely, automatic Union jurisdiction would erode the State police domain. Reforms should use transparent consent instruments, time-bound requests, joint teams and neutral criteria, without executive circumvention of section 6.

Indian federalism therefore supports a qualified State gate, exceptional constitutional correction and cooperative investigative protocols.

Why this earns marks: The answer uses statutory text, State List entries and two controlling cases, evaluates both centralisation and obstruction risks, and proposes reforms compatible with section 6.

Original Mains 6 - 20 marks, 250 words

Suggest reforms that can strengthen CBI independence and CVC effectiveness without creating an unaccountable investigative state.

Model answer:

Reform must insulate evidence-based investigation from improper control while keeping coercive power answerable to federalism, law, Parliament and courts.

First, clarify legal status. Claim: CBI's resolution-based organisation creates ambiguity. **Evidence:** police powers come through the 1946 DSPE Act, while the bureau dates to the 1963 resolution. **Analysis:** Parliament should debate a dedicated CBI law defining mandate, allocation, interference offences and reporting. **Qualification:** legislation must preserve section 6 consent and Articles 32/226.

Second, secure professional capacity. Claim: staffing, deputation, forensics and prosecution delays weaken outcomes. **Evidence:** complex corruption requires financial, cyber and scientific expertise. **Analysis:** build a stable multidisciplinary cadre, laboratory capacity, fixed investigator tenures and common digital-evidence standards. **Qualification:** capacity needs audit, diversity and external review.

Third, protect investigation governance. Use auditable case allocation, written recusals, documented transfers and non-sensitive publication of policy criteria. *Alok Kumar Verma* shows that transfer-like divestment must respect the statutory committee. Annual Director extensions should retain genuine public-interest reasons and committee scrutiny.

Fourth, strengthen CVC. Professionalise CVOs, track investigation and sanction delay, require substantive reasons when advice is rejected, and improve section 14 aggregate reporting. **Qualification:** CVC must not dictate particular-case outcomes or acquire conviction power.

Fifth, repair federal trust. Adopt lawful model consent protocols, time-bound decisions and joint coordination for multi-State cases.

The target is not "CBI beyond government" but operational insulation plus legal answerability, with courts determining guilt and Parliament examining institutional performance.

Why this earns marks: The model matches each reform to a mechanism of weakness, uses statutory and case evidence, preserves reciprocal controls and rejects both executive command and agency impunity.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Advanced 1 - Institutional integrity in CVC appointment

Claim: formal eligibility does not exhaust a high-level appointment body's duty. **Named evidence:** *Centre for Public Interest Litigation v Union of India* (2011) required the section 4 committee to consider the institutional integrity of CVC and quashed the impugned appointment after relevant material had not been properly considered. **Analysis:** public trust in an integrity institution depends on the credibility of the selection process, not merely on a candidate meeting a service-description threshold. **Qualification:** judicial review tests legality and relevant consideration; it does not substitute the Court's preferred candidate.

Advanced 2 - Consent defects remain instrument-specific

Fertico Marketing and Investment Pvt Ltd v CBI (2020) is useful only with its facts: the general-consent terms, the manner in which State officials emerged, subsequent consent and the absence of demonstrated prejudice mattered. It is not authority for the proposition that later consent always cures an investigation begun without jurisdiction. In an advanced answer, write: **text of consent -> timing -> persons/offences -> prejudice -> narrow precedent.**

Advanced 3 - The "caged parrot" metaphor

The Supreme Court's courtroom criticism during coal-block proceedings became a powerful description of perceived executive influence. Use it as institutional context, not as a statutory provision, binding test or proof that every CBI investigation is controlled. A higher-quality paragraph moves from the metaphor to mechanisms: resolution-based organisation, staffing and budget dependence, transfers, selective reference, annual-extension incentives, consent conflict and prosecution delay; it then tests those mechanisms against *Vineet Narain*, section 4A/4B and *Alok Kumar Verma*.

Advanced 4 - Independence is multi-dimensional

Appointment independence, tenure security, functional investigation autonomy, financial capacity, personnel stability and post-investigation prosecution quality are distinct. A plural appointment committee cannot compensate for weak forensics; an independent investigator cannot compensate for delayed sanction; a strong prosecution cannot cure unlawful territorial jurisdiction. Therefore reform must be evaluated as a chain rather than a single statutory amendment.

Advanced 5 - Accountability without prejudicing investigation

Parliament and the public need system-level information on delays, staffing, sanction movement, action on advice and recurring risk. Live evidence, witnesses and strategy need operational confidentiality. The defensible model is aggregate, comparable section 14 reporting plus judicially reviewable individual decisions, not public trial by disclosure or complete secrecy.

CONSOLIDATED REGISTER NOTES

Core identity

Actor	Legal basis	Primary output	Cannot do
CVC	CVC Act, 2003	vigilance supervision, review, advice	general policing, prosecution, conviction
CBI	Resolution, 1 April 1963	investigative organisation	claim inherent all-India authority
DSPE	DSPE Act, 1946	statutory police investigation	bypass notified-offence/territorial gates
CVO	departmental vigilance framework	prevention, complaint and disciplinary coordination	act as court or automatic CBI unit
Lokpal	Lokpal and Lokayuktas Act, 2013	complaint routing and referred-matter decisions	permanently administer every CBI case
Prosecution	DSPE/PC Act and criminal process	present State case	decide guilt
Court	Constitution and criminal law	cognizance, trial, judgment	become routine departmental vigilance

Chronology

1941 SPE -> 1946 DSPE Act -> 1 April 1963 CBI Resolution -> 1964 CVC Resolution -> 18 December 1997 *Vineet Narain* -> 1998 CVC Ordinance -> 1999 Bill process -> 11 September 2003 CVC Act -> 16 January 2014 Lokpal amendments operative -> 14 November 2021 Director-extension amendment operative.

CVC design

- Section 3: one Central Vigilance Commissioner as Chairperson plus not more than two Vigilance Commissioners.
- Two experience pools: Union/AIS administration including police administration; specified central public-sector experience in finance, law, vigilance and investigations.
- Category guard: not more than two appointees from either pool when all three offices are filled.
- Appointment: President after PM + Home Minister + Lok Sabha LoP/statutory substitute recommendation.
- Term: four years or age sixty-five, whichever earlier.
- VC-to-CVC is possible, but aggregate Commission service cannot exceed four years.
- Removal: proved misbehaviour/incapacity through Presidential reference and Supreme Court inquiry; separate direct grounds include insolvency, qualifying conviction, outside paid employment, infirmity and prejudicial interest.
- *Centre for PIL* (2011): selection must protect institutional integrity.

CVC section 8 and limits

S-D-I-R-S-A-V: superintend DSPE PC Act work; direct within the non-dictation proviso; inquire/cause inquiry or investigation; review investigation; review sanction applications; advise; supervise vigilance administration.

- CVC superintendence is not over all CBI matters.
- CVC cannot require a particular investigation or disposal manner.
- Civil-court inquiry powers do not create criminal-trial power.
- Advice is not automatically binding; section 17 requires written reasons for disagreement.
- Section 14: annual report within six months of year-end; separate relevant DSPE part; President lays it before both Houses.

CVO and PIDPI

- CVO: preventive vigilance, complaint scrutiny, process correction, disciplinary liaison and lawful criminal referral.
- PIDPI Resolution, 21 April 2004: CVC is designated agency for protected written disclosures within the applicable field and safeguards identity.
- Confidential identity is not the same as an anonymous/pseudonymous protected complaint.
- Do not use the Whistle Blowers Protection Act, 2014 as operative authority without verified commencement.

DSPE 2-3-4-5-6 ladder

Section	Recall
2	Union Territory police-power baseline
3	Central notification of offences/classes
4	CVC for PC Act superintendence; Centre otherwise; Director administers
5	Central extension order to State area
6	State consent for ordinary exercise in State

General consent is standing and defined; specific consent is case/fact/person specific. Withdrawal ordinarily affects new cases prospectively. *Kazi Lhendup Dorji* protects continuity of investigations validly begun before withdrawal. *Fertico* is fact-specific.

Constitutional court route

State of West Bengal v CPDR (2010): High Courts under Article 226 and the Supreme Court under Article 32 may direct CBI investigation without State consent. The source is constitutional judicial review, not deemed consent. Use is sparing, cautious and exceptional. The Union executive cannot claim this exception for itself.

Vineet Narain and approval gates

- *Vineet Narain* (1997): statutory-CVC trajectory, CVC anti-corruption oversight/reporting, minimum Director tenure, its then CVC-Home Secretary-Personnel Secretary selection route, transfer and internal work-allocation safeguards, CBI Manual discipline, and invalidation of the Single Directive. The current section 4A committee is different.
- Former DSPE section 6A: senior-rank approval shield; struck down under Article 14 in *Subramanian Swamy v Director, CBI* (2014).
- PC Act section 17A: previous approval before decision-linked enquiry/inquiry/investigation where attracted; on-the-spot undue-advantage arrest exception.
- PC Act section 19: sanction before court cognizance of specified offences.
- Never merge section 17A with section 19 or treat either as guilt determination.

CBI Director and senior posts

- Section 4A Director committee: PM + Lok Sabha LoP/largest opposition-party leader + CJI or nominated Supreme Court judge.
- Committee recommends an IPS panel using seniority, integrity and anti-corruption investigation experience.
- Section 4B: two-year minimum; transfer requires committee consent.
- Extension: public interest + same committee + written reasons + one year at a time + aggregate maximum five years.
- *Alok Kumar Verma* (2019): divestment of powers can be transfer-like; committee safeguard cannot be bypassed by label.
- Section 4C: CVC-chaired committee for SP-and-above posts except Director, after consulting Director.
- Section 4BA: Director of Prosecution appointed by Central Government on CVC recommendation; minimum two-year tenure; overall supervision/control of CBI Director.

Lokpal interface

- Section 20: specified Group A-D preliminary-inquiry complaints may be routed to CVC.
- Groups A-B: CVC reports to Lokpal; Groups C-D: CVC proceeds under the amended CVC Act route.
- Section 25: Lokpal superintends DSPE matters referred under its Act, approves transfer of the investigating officer and cannot dictate a particular case's manner or result.

Investigation lifecycle

complaint/source/reference -> jurisdiction and threshold -> PE where appropriate or FIR/Regular Case -> evidence collection -> section 17A where attracted -> charge sheet/closure -> section 19 where required -> court cognizance -> trial -> acquittal/conviction.

Thommandru Hannah Vijayalakshmi (2021): PE is not mandatory before every corruption FIR and is not an accused's right when information already discloses a cognizable offence.

Problems and reforms

Problem	Reform
resolution-based CBI status	debated dedicated law preserving section 6 and Articles 32/226
staffing/deputation dependence	stable multidisciplinary cadre with audit and diversity
forensic/digital delay	laboratory capacity and evidence standards
consent conflict	lawful model instruments, time-bound requests, joint coordination
selective-use perception	auditable allocation, recusals and transfer reasons
sanction/prosecution delay	stage tracking and reasoned decisions
weak CVC follow-up	professional CVOs, substantive disagreement reasons, stronger aggregate reporting

Verified PYQ route

2021 GS-II: define CBI/DSPE -> State List -> sections 5-6 -> general/specific consent -> prospective withdrawal and *Kazi* -> Articles 32/226 and *CPDR* -> qualified federal verdict.

Final answer spine

CVC-CBI reform should secure operationally independent evidence-gathering while retaining statutory superintendence, State consent in the ordinary route, exceptional constitutional-court correction, prosecution safeguards, parliamentary system scrutiny and final judicial determination of guilt.

COMPLETE ASCII MASTER FLOW DIAGRAM

POLITY TOPIC 37 - CVC AND CBI - ASCII MASTER FLOW DIAGRAM

[1/12] IDENTITY AND ROLE FIREWALL

CVC Act 2003 -> statutory vigilance, supervision, advice
CBI Resolution 1 Apr 1963 -> executive-created organisation
DSPE Act 1946 -> statutory police establishment and principal CBI police powers
CVO -> departmental prevention/discipline liaison
Lokpal -> complaint and referred-matter route
Prosecutor -> presents State case | Court -> cognizance, trial, guilt
Core warning: advice != FIR != charge sheet != conviction

[2/12] CHRONOLOGY

1941 Special Police Establishment in wartime supply-corruption setting
-> 1946 DSPE Act gives continuing statutory police framework
-> 1 Apr 1963 Government Resolution establishes CBI
-> 1964 Government Resolution establishes CVC after Santhanam Committee
-> 18 Dec 1997 Vineet Narain independence directions
-> 1998 CVC Ordinance gives interim statutory bridge
-> 1999 Bill process -> 11 Sep 2003 CVC Act
-> 16 Jan 2014 Lokpal Act amendments operative
-> 14 Nov 2021 DSPE Director-extension amendment operative

[3/12] CVC DESIGN - SECTIONS 3 TO 6

Composition: Central Vigilance Commissioner (Chairperson) + not more than 2 VCs
Qualification pools:

- A. AIS/Union service or civil post: vigilance, policy, administration incl. police
- B. central statutory corporation/government company: finance incl. banking/insurance, law, vigilance, investigations

Category guard: if 3 offices filled, not more than 2 from either pool

Appointment: President <- PM (chair) + Home Minister + Lok Sabha LoP/substitute

Term: 4 years or age 65, earlier; VC->CVC allowed, aggregate service <=4 years

Removal: proved misconduct/incapacity -> President reference -> Supreme Court inquiry;
separate listed direct grounds; post-tenure government-employment limits

[4/12] CVC SECTION 8 - POWER AND BOUNDARY

Superintend DSPE investigation of PC Act and connected same-trial offences

-> give lawful directions

X never require investigation/disposal of a particular case in a particular manner

Inquire/cause inquiry or investigation on Central reference or covered complaint

Review DSPE investigation progress + prosecution-sanction applications

Advise Union/covered central bodies + supervise vigilance administration

Civil-court inquiry powers do not create police, prosecution or conviction power

[5/12] CVO, ADVICE, REPORTING AND PIDPI

CVC -> CVO -> preventive vigilance | complaint scrutiny | disciplinary coordination

CVO X police station | prosecutor | final disciplinary authority

CVC advice may be rejected -> section 17 written reasons communicated to CVC

section 14 annual report within 6 months of year-end:

separate relevant DSPE part -> President -> both Houses of Parliament

PIDPI Resolution 21 Apr 2004:

CVC designated agency -> protected written disclosure -> identity confidentiality

X anonymous/pseudonymous protected route | X conviction power

Whistle Blowers Protection Act 2014 not used as operative authority without commencement

[6/12] CBI ORGANISATION AND DSPE LEGAL STACK

Stable CBI categories: anti-corruption | economic offences | special crimes

support/forensics/prosecution | INTERPOL NCB

Organisational category never enlarges legal jurisdiction

DSPE section 2 -> Union Territory police-power baseline

DSPE section 3 -> Central Government notification of offences/classes

Public importance or "central agency" label is not a jurisdiction source

[7/12] DSPE SECTIONS 4, 5 AND 6

section 4(1): CVC superintendence for PC Act investigations

section 4(2): Central Government superintendence for other DSPE matters

section 4(3): administration in Director

section 5: Central order extends powers/jurisdiction to State area for notified offences

section 6: State consent for ordinary exercise in State

general consent = standing, defined, possibly conditional

specific consent = named case/facts/persons/offences

Sequence: notified offence -> section 5 extension -> section 6 consent

[8/12] WITHDRAWAL AND CONSTITUTIONAL COURTS

State withdraws general consent:

existing investigation validly begun -> may continue: Kazi Lhendup Dorji (1994)

new investigation -> fresh consent or other lawful route ordinarily required

Fertico (2020) is fact-specific; no universal post-facto-cure rule
CPDR Constitution Bench (2010):
High Court Art.226 / Supreme Court Art.32 may order CBI probe without State consent
source = constitutional judicial review, not deemed consent
use sparingly, cautiously, exceptionally; Union executive cannot self-invoke exception

[9/12] VINEET NARAIN, SECTION 6A AND PC ACT GATES

Vineet Narain (1997):

statutory CVC trajectory | CVC anti-corruption oversight | Director 2-year floor
then CVC-Home Sec-Personnel Sec selection route | transfer/work-allocation safeguards
CBI Manual discipline | Single Directive struck down

Former DSPE section 6A revived senior-rank approval shield

-> Subramanian Swamy v Director CBI (2014): invalid under Article 14

Current distinct PC Act gates:

section 17A -> previous approval before decision-linked inquiry/investigation
exception: on-the-spot undue-advantage arrest

section 19 -> sanction before court cognizance of specified offences

Neither approval nor sanction determines guilt

[10/12] DIRECTOR, SENIOR POSTS, LOKPAL AND PROSECUTION

section 4A Director committee:

PM + Lok Sabha LoP/largest opposition leader + CJI/SC judge nominee

panel from IPS on seniority + integrity + anti-corruption investigation experience

section 4B: minimum 2 years; transfer needs committee consent

extension = public interest + committee + written reasons + 1 year at a time

aggregate maximum 5 years, never automatic

Alok Kumar Verma (2019): divestment can be transfer-like; process cannot be bypassed

section 4C SP+ committee: CVC + VCs + Home Secretary + Personnel Secretary; consult Director

section 4BA Director of Prosecution: Central appointment on CVC recommendation; >=2 years

Lokpal ss.20/25: CVC preliminary-inquiry route + referred-DSPE superintendence;

no particular-case dictation

[11/12] PERFORMANCE PROBLEMS AND REFORM MATCH

Political-control allegation -> auditable allocation, recusals, protected transfers

Resolution-based CBI status -> debated dedicated law, preserving federalism and courts

Deputation/manpower gaps -> stable multidisciplinary cadre with external accountability

Forensic/digital delay -> laboratories, standards, chain-of-custody capacity

Consent disputes -> lawful model instruments, time-bound requests, joint coordination

Sanction/prosecution delay -> dashboards, reasoned decisions, prosecution coordination

Weak follow-up on CVC advice -> substantive reasons + CVO protection + section 14 scrutiny

Rule: every autonomy gain requires audit, reasons, judicial review and due process

[12/12] PRELIMS TRAPS, PYQ ROUTE AND QUALIFIED VERDICT

Never write:

CBI statutory/constitutional | CVC controls all CBI | State consent always/never needed

withdrawal retrospectively voids completed investigation | five-year Director term automatic

section 17A = section 19 | CVC/CBI convict or punish | Lokpal permanently runs CBI

2021 GS-II answer route:

CBI/DSPE identity -> State List -> ss.5-6 -> general/specific consent

-> prospective withdrawal/Kazi -> Arts.32/226 CPDR exception -> federal verdict

QUALIFIED VERDICT:

CVC-CBI legitimacy requires operationally insulated investigation, bounded supervision,

cooperative federal consent, timely prosecution, parliamentary system scrutiny,

due process and final judicial determination of guilt.